

1 AN ACT relating to interstate licensure compacts.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 314A IS CREATED TO
4 READ AS FOLLOWS:

5 **RESPIRATORY CARE INTERSTATE COMPACT**

6 **SECTION 1.**

7 **TITLE AND PURPOSE**

8 **A. The purpose of this compact is to facilitate the interstate practice of respiratory**
9 **therapy with the goal of improving public access to respiratory therapy services by**
10 **providing respiratory therapists licensed in a member state the ability to practice**
11 **in other member states. This compact preserves the regulatory authority of states**
12 **to protect public health and safety through the current system of state licensure.**

13 **B. This compact is designed to achieve the following objectives:**

14 **1. Increase public access to respiratory therapy services by creating a**
15 **responsible, streamlined pathway for licensees to practice in member states**
16 **with the goal of improving outcomes for patients;**

17 **2. Enhance states' ability to protect the public's health and safety;**

18 **3. Promote the cooperation of member states in regulating the practice of**
19 **respiratory therapy within those member states;**

20 **4. Ease administrative burdens on states by encouraging the cooperation of**
21 **member states in regulating multistate respiratory therapy practice;**

22 **5. Support relocating active military members and their spouses; and**

23 **6. Promote mobility and address workforce shortages.**

24 **SECTION 2.**

25 **DEFINITIONS**

26 **As used in this compact, unless the context requires otherwise, the following**
27 **definitions shall apply:**

- 1 A. "Active military member" means any person with a full-time duty status in the
2 Armed Forces of the United States, including members of the National Guard
3 and Reserve;
- 4 B. "Adverse action" means any administrative, civil, equitable, or criminal action
5 permitted by a state's laws which is imposed by any state authority with
6 regulatory authority over respiratory therapists, such as license denial, censure,
7 revocation, suspension, probation, monitoring of the licensee, or restriction on
8 the licensee's practice, not including participation in an alternative program;
- 9 C. "Alternative program" means a nondisciplinary monitoring or practice
10 remediation process applicable to a respiratory therapist approved by any state
11 authority with regulatory authority over respiratory therapists. This includes but
12 is not limited to programs to which licensees with substance abuse or addiction
13 issues are referred in lieu of adverse action;
- 14 D. "Charter member states" means those member states who were the first seven (7)
15 states to enact the compact into the laws of their state;
- 16 E. "Commission" or "Respiratory Care Interstate Compact Commission" means the
17 government instrumentality and body politic whose membership consists of all
18 member states that have enacted the compact;
- 19 F. "Commissioner" means the individual appointed by a member state to serve as
20 the member of the commission for that member state;
- 21 G. "Compact" means the Respiratory Care Interstate Compact;
- 22 H. "Compact privilege" means the authorization granted by a remote state to allow a
23 licensee from another member state to practice as a respiratory therapist in the
24 remote state under the remote state's laws and rules. The practice of respiratory
25 therapy occurs in the member state where the patient is located at the time of the
26 patient encounter;
- 27 I. "Criminal background check" means the submission by the member state of

1 fingerprints or other biometric-based information on license applicants at the
2 time of initial licensing for the purpose of obtaining that applicant's criminal
3 history record information, as defined in 28 C.F.R. sec. 20.3(d) or successor
4 provision, from the Federal Bureau of Investigation and the state's criminal
5 history record repository, as defined in 28 C.F.R. sec. 20.3(f) or successor
6 provision;

7 J. "Data system" means the commission's repository of information about licensees
8 as further set forth in Section 8 of this compact;

9 K. "Domicile" means the jurisdiction which is the licensee's principal home for
10 legal purposes;

11 L. "Encumbered license" means a license that a state's respiratory therapy
12 licensing authority has limited in any way;

13 M. "Executive committee" means a group of directors elected or appointed to act on
14 behalf of, and within the powers granted to them by, the commission;

15 N. "Home state" except as set forth in Section 5 of this compact, means the member
16 state that is the licensee's primary domicile;

17 O. "Home state license" means an active license to practice respiratory therapy in a
18 home state that is not an encumbered license;

19 P. "Jurisprudence requirement" means an assessment of an individual's knowledge
20 of the state laws and regulations governing the practice of respiratory therapy in
21 such state;

22 Q. "Licensee" means an individual who currently holds an authorization from the
23 state to practice as a respiratory therapist;

24 R. "Member state" means a state that has enacted the compact and been admitted to
25 the commission in accordance with the provisions herein and commission rules;

26 S. "Model compact" means the model for the Respiratory Care Interstate Compact
27 on file with the Council of State Governments or other entity as designated by the

1 commission;

2 T. "Remote state" means a member state where a licensee is exercising or seeking to
3 exercise the compact privilege;

4 U. "Respiratory therapist" or "respiratory care practitioner" means an individual
5 who holds a credential issued by the National Board for Respiratory Care, or its
6 successor, and holds a license in a state to practice respiratory therapy. For
7 purposes of this compact, any other title or status adopted by a state to replace the
8 term "respiratory therapist" or "respiratory care practitioner" shall be deemed
9 synonymous with "respiratory therapist" and shall confer the same rights and
10 responsibilities to the licensee under the provisions of this compact at the time of
11 its enactment;

12 V. "Respiratory therapy," "respiratory therapy practice," "respiratory care," "the
13 practice of respiratory care," and "the practice of respiratory therapy" means the
14 care and services provided by or under the direction and supervision of a
15 respiratory therapist or respiratory care practitioner;

16 W. "Respiratory therapy licensing authority" means the agency, board, or other
17 body of a state that is responsible for licensing and regulation of respiratory
18 therapists;

19 X. "Rule" means a regulation promulgated by the commission that has the force
20 and effect of law;

21 Y. "Scope of practice" means the procedures, actions, and processes a respiratory
22 therapist licensed in a state or practicing under a compact privilege in a state is
23 permitted to undertake in that state and the circumstances under which the
24 respiratory therapist is permitted to undertake those procedures, actions, and
25 processes. Such procedures, actions, and processes, and the circumstances under
26 which they may be undertaken, may be established through means, including but
27 not limited to statutes, regulations, case law, and other processes available to the

1 state respiratory therapy licensing authority or other government agency;

2 Z. "Significant investigative information" means information, records, and
3 documents received or generated by a state respiratory therapy licensing authority
4 pursuant to an investigation for which a determination has been made that there
5 is probable cause to believe that the licensee has violated a statute or regulation
6 that is considered more than a minor infraction for which the state respiratory
7 therapy licensing authority could pursue adverse action against the licensee; and

8 AA. "State" means any state, commonwealth, district, or territory of the United States.

9 SECTION 3.

10 STATE PARTICIPATION IN THIS COMPACT

11 A. In order to participate in this compact and thereafter continue as a member state,
12 a member state shall:

13 1. Enact a compact that is not materially different from the model compact;

14 2. License respiratory therapists;

15 3. Participate in the commission's data system;

16 4. Have a mechanism in place for receiving and investigating complaints
17 against licensees and compact privilege holders;

18 5. Notify the commission, in compliance with the terms of this compact and
19 commission rules, of any adverse action against a licensee, a compact
20 privilege holder, or a license applicant;

21 6. Notify the commission, in compliance with the terms of this compact and
22 commission rules, of the existence of significant investigative information;

23 7. Comply with the rules of the commission;

24 8. Grant the compact privilege to a holder of an active home state license and
25 otherwise meet the applicable requirements of Section 4 of this compact in a
26 member state; and

27 9. a. Complete a criminal background check for each new licensee at the

1 time of initial licensure.

2 b. Where expressly authorized or permitted by federal law, whether such
3 federal law is in effect prior to, at, or after the time of a member state's
4 enactment of this compact, a member state's enactment of this
5 compact shall hereby authorize the member state's respiratory therapy
6 licensing authority to perform criminal background checks as defined
7 in Section 2 of this compact. The absence of such a federal law as
8 described in this subsection shall not prevent or preclude such
9 authorization where it may be derived or granted through means other
10 than the enactment of this compact.

11 B. Nothing in this compact prohibits a member state from charging a fee for
12 granting and renewing the compact privilege.

13 SECTION 4.

14 COMPACT PRIVILEGE

15 A. To exercise the compact privilege under the terms and provisions of the compact,
16 the licensee shall:

17 1. Hold and maintain an active home state license as a respiratory therapist;

18 2. Hold and maintain an active credential from the National Board for
19 Respiratory Care, or its successor, that would qualify them for licensure in
20 the remote state in which they are seeking the compact privilege;

21 3. Have not had any adverse action against a license within the previous two
22 (2) years;

23 4. Notify the commission that the licensee is seeking the compact privilege
24 within a remote state;

25 5. Pay any applicable fees, including any state and commission fees and
26 renewal fees, for the compact privilege;

27 6. Meet any jurisprudence requirements established by the remote state in

1 which the licensee is seeking a compact privilege;

2 7. Report to the commission adverse action taken by any nonmember state
3 within thirty (30) days from the date the adverse action is taken;

4 8. Report to the commission, when applying for a compact privilege, the
5 address of the licensee's domicile and thereafter promptly report to the
6 commission any change in the address of the licensee's domicile within
7 thirty (30) days of the effective date of the change in address; and

8 9. Consent to accept service of process by mail at the licensee's domicile on
9 record with the commission with respect to any action brought against the
10 licensee by the commission or a member state, and consent to accept service
11 of a subpoena by mail at the licensee's domicile on record with the
12 commission with respect any action brought or investigation conducted by
13 the commission or a member state.

14 B. The compact privilege is valid until the expiration date or revocation of the home
15 state license unless terminated pursuant to adverse action. The licensee must
16 comply with all of the requirements of subsection A. of this section to maintain
17 the compact privilege in a remote state. If those requirements are met, no adverse
18 actions are taken, and the licensee has paid any applicable compact privilege
19 renewal fees, then the licensee will maintain the licensee's compact privilege.

20 C. A licensee providing respiratory therapy in a remote state under the compact
21 privilege shall function within the scope of practice authorized by the remote state
22 for the type of respiratory therapist license the licensee holds. Such procedures,
23 actions, processes, and the circumstances under which they may be undertaken
24 may be established through means, including but not limited to statutes,
25 regulations, case law, and other processes available to the state respiratory
26 therapy licensing authority or other government agency.

27 D. If a licensee's compact privilege in a remote state is removed by the remote state,

1 the individual shall lose or be ineligible for the compact privilege in that remote
2 state until the compact privilege is no longer limited or restricted by that state.

3 E. If a home state license is encumbered, the licensee shall lose the compact
4 privilege in all remote states until the following occur:

5 1. The home state license is no longer encumbered; and

6 2. Two (2) years have elapsed from the date on which the license is no longer
7 encumbered due to the adverse action.

8 F. Once a licensee with a restricted or limited license meets the requirements of
9 subsection E. of this section, the licensee must also meet the requirements of
10 subsection A. of this section to obtain a compact privilege in a remote state.

11 SECTION 5.

12 ACTIVE MILITARY MEMBER OR THEIR SPOUSE

13 A. An active military member, or their spouse, shall designate a home state where
14 the individual has a current license in good standing. The individual may retain
15 the home state designation during the period the service member is on active
16 duty.

17 B. An active military member and their spouse shall not be required to pay to the
18 commission for a compact privilege any fee that may otherwise be charged by the
19 commission. If a remote state chooses to charge a fee for a compact privilege, it
20 may choose to charge a reduced fee or no fee to an active military member and
21 their spouse for a compact privilege.

22 SECTION 6.

23 ADVERSE ACTIONS

24 A. A member state in which a licensee is licensed shall have authority to impose
25 adverse action against the license issued by that member state.

26 B. A member state may take adverse action based on significant investigative
27 information of a remote state or the home state, so long as the member state

1 follows its own procedures for imposing adverse action.

2 C. Nothing in this compact shall override a member state's decision that
3 participation in an alternative program may be used in lieu of adverse action and
4 that such participation shall remain nonpublic if required by the member state's
5 laws.

6 D. A remote state shall have the authority to:

7 1. Take adverse actions as set forth herein against a licensee's compact
8 privilege in that state;

9 2. Issue subpoenas for both hearings and investigations that require the
10 attendance and testimony of witnesses, and the production of evidence.

11 a. Subpoenas may be issued by a respiratory therapy licensing authority
12 in a member state for the attendance and testimony of witnesses and
13 the production of evidence.

14 b. Subpoenas issued by a respiratory therapy licensing authority in a
15 member state for the attendance and testimony of witnesses shall be
16 enforced in the latter state by any court of competent jurisdiction in
17 the latter state, according to the practice and procedure of that court
18 applicable to subpoenas issued in proceedings pending before it.

19 c. Subpoenas issued by a respiratory therapy licensing authority in a
20 member state for production of evidence from another member state
21 shall be enforced in the latter state, according to the practice and
22 procedure of that court applicable to subpoenas issued in the
23 proceedings pending before it.

24 d. The issuing authority shall pay any witness fees, travel expenses,
25 mileage, and other fees required by the service statutes of the state
26 where the witnesses or evidence are located;

27 3. Unless otherwise prohibited by state law, recover from the licensee the costs

1 of investigations and disposition of cases resulting from any adverse action
2 taken against that licensee;

3 4. Notwithstanding paragraph 2. of this subsection, a member state may not
4 issue a subpoena to gather evidence of conduct in another member state
5 that is lawful in such other member state for the purpose of taking adverse
6 action against a licensee's compact privilege or application for a compact
7 privilege in that member state; and

8 5. Nothing in this compact authorizes a member state to impose discipline
9 against a respiratory therapist's compact privilege in that member state for
10 the individual's otherwise lawful practice in another state.

11 E. Joint investigations.

12 1. In addition to the authority granted to a member state by its respective
13 respiratory therapy practice act or other applicable state law, a member state
14 may participate with other member states in joint investigations of licensees,
15 provided, however, that a member state receiving such a request has no
16 obligation to respond to any subpoena issued regarding an investigation of
17 conduct or practice that was lawful in a member state at the time it was
18 undertaken.

19 2. Member states shall share any significant investigative information,
20 litigation, or compliance materials in furtherance of any joint or individual
21 investigation initiated under the compact. In sharing such information
22 between member state respiratory therapy licensing authorities, all
23 information obtained shall be kept confidential, except as otherwise
24 mutually agreed upon by the sharing and receiving member state or states.

25 F. Nothing in this compact may permit a member state to take any adverse action
26 against a licensee or holder of a compact privilege for conduct or practice that
27 was legal in the member state at the time it was undertaken.

1 G. Nothing in this compact may permit a member state to take disciplinary action
2 against a licensee or holder of a compact privilege for conduct or practice that
3 was legal in the member state at the time it was undertaken.

4 SECTION 7.

5 ESTABLISHMENT OF THE RESPIRATORY CARE INTERSTATE COMPACT

6 COMMISSION

7 A. The compact member states hereby create and establish a joint government
8 agency whose membership consists of all member states that have enacted the
9 compact known as the Respiratory Care Interstate Compact Commission. The
10 commission is an instrumentality of the compact member states acting jointly and
11 not an instrumentality of any one (1) state. The commission shall come into
12 existence on or after the effective date of the compact, as set forth in Section 11 of
13 this compact.

14 B. Membership, Voting, and Meetings.

- 15 1. Each member state shall have and be limited to one (1) commissioner
16 selected by that member state's respiratory therapy licensing authority.
- 17 2. The commissioner shall be an administrator or their designated staff
18 member of the member state's respiratory therapy licensing authority.
- 19 3. The commission shall by rule or bylaw establish a term of office for
20 commissioners and may by rule or bylaw establish term limits.
- 21 4. The commission may recommend to a member state the removal or
22 suspension any commissioner from office.
- 23 5. A member state's respiratory therapy licensing authority shall fill any
24 vacancy of its commissioner occurring on the commission within sixty (60)
25 days of the vacancy.
- 26 6. Each commissioner shall be entitled to one (1) vote on all matters before the
27 commission requiring a vote by commissioners.

1 7. A commissioner shall vote in person or by such other means as provided in
2 the bylaws. The bylaws may provide for commissioners to meet by
3 telecommunication, videoconference, or other means of communication.

4 8. The commission shall meet at least once during each calendar year.
5 Additional meetings may be held as set forth in the bylaws.

6 C. The commission shall have the following powers:

7 1. Establish and amend the fiscal year of the commission;

8 2. Establish and amend bylaws and policies, including but not limited to a
9 code of conduct and conflict of interest;

10 3. Establish and amend rules, which shall be binding in all member states;

11 4. Maintain its financial records in accordance with the bylaws;

12 5. Meet and take such actions as are consistent with the provisions of this
13 compact, the commission's rules, and the bylaws;

14 6. Initiate and conduct legal proceedings or actions in the name of the
15 commission, provided that the standing of any respiratory therapy licensing
16 authority to sue or be sued under applicable law shall not be affected;

17 7. Maintain and certify records and information provided to a member state as
18 the authenticated business records of the commission, and designate an
19 agent to do so on the commission's behalf;

20 8. Purchase and maintain insurance and bonds;

21 9. Accept or contract for services of personnel, including but not limited to
22 employees of a member state;

23 10. Conduct an annual financial review;

24 11. Hire employees, elect or appoint officers, fix compensation, define duties,
25 grant such individuals appropriate authority to carry out the purposes of the
26 compact, and establish the commission's personnel policies and programs
27 relating to conflicts of interest, qualifications of personnel, and other

- 1 related personnel matters;
- 2 12. Assess and collect fees;
- 3 13. Accept any and all appropriate gifts, donations, grants of money, other
- 4 sources of revenue, equipment, supplies, materials, and services, and
- 5 receive, utilize, and dispose of the same, provided that at all times:
- 6 a. The commission shall avoid any appearance of impropriety; and
- 7 b. The commission shall avoid any appearance of conflict of interest;
- 8 14. Lease, purchase, retain, own, hold, improve, or use any property, real,
- 9 personal, or mixed, or any undivided interest therein;
- 10 15. Sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise
- 11 dispose of any property, real, personal, or mixed;
- 12 16. Establish a budget and make expenditures;
- 13 17. Borrow money in a fiscally responsible manner;
- 14 18. Appoint committees, including standing committees, composed of
- 15 commissioners, state regulators, state legislators or their representatives,
- 16 and consumer representatives, and such other interested persons as may be
- 17 designated in this compact and the bylaws;
- 18 19. Provide and receive information from, and cooperate with, law enforcement
- 19 agencies;
- 20 20. Establish and elect an executive committee, including a chair, vice-chair,
- 21 secretary, treasurer, and such other offices as the commission shall
- 22 establish by rule or bylaw;
- 23 21. Enter into contracts or arrangements for the management of the affairs of
- 24 the commission;
- 25 22. Determine whether a state's adopted language is materially different from
- 26 the model compact language such that the state would not qualify for
- 27 participation in the compact; and

1 23. Perform such other functions as may be necessary or appropriate to achieve
2 the purposes of this compact.

3 D. The Executive Committee.

4 1. The executive committee shall have the power to act on behalf of the
5 commission according to the terms of this compact. The powers, duties, and
6 responsibilities of the executive committee shall include:

7 a. Overseeing the day-to-day activities of the administration of the
8 compact, including enforcement and compliance with the provisions
9 of the compact, its rules and bylaws, and other such duties as deemed
10 necessary;

11 b. Recommending to the commission changes to the rules or bylaws,
12 changes to this compact legislation, fees charged to compact member
13 states, fees charged to licensees, and other fees;

14 c. Ensuring compact administration services are appropriately provided,
15 including by contract;

16 d. Preparing and recommending the budget;

17 e. Maintaining financial records on behalf of the commission;

18 f. Monitoring compact compliance of member states and providing
19 compliance reports to the commission;

20 g. Establishing additional committees as necessary;

21 h. Exercising the powers and duties of the commission during the
22 interim between commission meetings, except for adopting or
23 amending rules, adopting or amending bylaws, and exercising any
24 other powers and duties expressly reserved to the commission by rule
25 or bylaw; and

26 i. Performing other duties as provided in the rules or bylaws of the
27 commission.

- 1 2. The executive committee shall be composed of up to nine (9) members, as
2 further set forth in the bylaws of the commission:
3 a. Seven (7) voting members who are elected by the commission from the
4 current membership of the commission; and
5 b. Two (2) ex-officio, nonvoting members;
6 3. The commission may remove any member of the executive committee as
7 provided in the commission's bylaws.
8 4. The executive committee shall meet at least annually.
9 a. Executive committee meetings shall be open to the public, except that
10 the executive committee may meet in a closed, non-public meeting as
11 provided in subsection F.4. of this section;
12 b. The executive committee shall give advance notice of its meetings,
13 posted on its website and as determined to provide notice to persons
14 with an interest in the business of the commission; and
15 c. The executive committee may hold a special meeting in accordance
16 with subsection F.2. of this section.
17 E. The commission shall adopt and provide to the member states an annual report.
18 F. Meetings of the Compact Commission.
19 1. All meetings of the commission that are not closed pursuant to paragraph 4.
20 of this subsection shall be open to the public. Notice of public meetings
21 shall be posted on the commission's website at least thirty (30) days prior to
22 the public meeting.
23 2. Notwithstanding paragraph 1. of this subsection, the commission may
24 convene an emergency public meeting by providing at least twenty-four (24)
25 hours prior notice on the commission's website, and any other means as
26 provided in the commission's rules, for any of the reasons it may dispense
27 with notice of proposed rulemaking under subsection G. of Section 9 of this

1 compact. The commission's legal counsel shall certify that one (1) of the
2 reasons justifying an emergency public meeting has been met.

3 3. Notice of all commission meetings shall provide the time, date, and location
4 of the meeting, and if the meeting is to be held or accessible via
5 telecommunication, video conference, or other electronic means, the notice
6 shall include the mechanism for access to the meeting.

7 4. The commission or the executive committee may convene in a closed,
8 nonpublic meeting for the commission or executive committee to receive or
9 solicit legal advice or to discuss:

10 a. Noncompliance of a member state with its obligations under the
11 compact;

12 b. The employment, compensation, discipline or other matters, practices
13 or procedures related to specific employees;

14 c. Current or threatened discipline of a licensee or compact privilege
15 holder by the commission or by a member state's respiratory therapy
16 licensing authority;

17 d. Current, threatened, or reasonably anticipated litigation;

18 e. Negotiation of contracts for the purchase, lease, or sale of goods,
19 services, or real estate;

20 f. Accusing any person of a crime or formally censuring any person;

21 g. Trade secrets or commercial or financial information that is privileged
22 or confidential;

23 h. Information of a personal nature where disclosure would constitute a
24 clearly unwarranted invasion of personal privacy;

25 i. Investigative records compiled for law enforcement purposes;

26 j. Information related to any investigative reports prepared by or on
27 behalf of or for use of the commission or other committee charged

1 with responsibility of investigation or determination of compliance
2 issues pursuant to the compact;

3 k. Legal advice;

4 l. Matters specifically exempted from disclosure by federal or member
5 state law; or

6 m. Other matters as promulgated by the commission by rule.

7 5. If a meeting, or portion of a meeting, is closed, the presiding officer shall
8 state that the meeting will be closed and reference each relevant exempting
9 provision, and such reference shall be recorded in the minutes.

10 6. The commission shall keep minutes in accordance with commission rules
11 and bylaws. All documents considered in connection with an action shall be
12 identified in such minutes. All minutes and documents of a closed meeting
13 shall remain under seal, subject to release only by a majority vote of the
14 commission or order of a court of competent jurisdiction.

15 G. Financing of the Compact Commission.

16 1. The commission shall pay, or provide for the payment of, the reasonable
17 expenses of its establishment, organization, and ongoing activities.

18 2. The commission may accept any and all appropriate revenue sources as
19 provided herein.

20 3. The commission may levy on and collect an annual assessment from each
21 member state and impose fees on licensees of member states to whom it
22 grants a compact privilege to cover the cost of the operations and activities
23 of the commission and its staff. The aggregate annual assessment amount
24 for member states, if any, shall be allocated based upon a formula that the
25 commission shall promulgate by rule.

26 4. The commission shall not incur obligations of any kind prior to securing
27 the funds or a loan adequate to meet the same; nor shall the commission

1 pledge the credit of any of the member states, except by and with the
2 authority of the member state.

3 5. The commission shall keep accurate accounts of all receipts and
4 disbursements. The receipts and disbursements of the commission shall be
5 subject to the financial review and accounting procedures established under
6 its bylaws. However, all receipts and disbursements of funds handled by the
7 commission shall be subject to an annual financial review by a certified or
8 licensed public accountant, and the report of the financial review shall be
9 included in and become part of the annual report of the commission.

10 H. Qualified Immunity, Defense, and Indemnification.

11 1. Nothing herein shall be construed as a limitation on the liability of any
12 licensee for professional malpractice or misconduct, which shall be
13 governed solely by any other applicable state laws.

14 2. The member states, commissioners, officers, executive directors, employees,
15 and agents of the commission shall be immune from suit and liability, both
16 personally and in their official capacity, for any claim for damage to or loss
17 of property or personal injury or other civil liability caused by or arising out
18 of any actual or alleged act, error, or omission that occurred, or that the
19 person against whom the claim is made had a reasonable basis for believing
20 occurred within the scope of commission employment, duties or
21 responsibilities, provided that nothing in this subsection shall be construed
22 to protect any such person from suit or liability for any damage, loss, injury,
23 or liability caused by the intentional or willful or wanton misconduct of that
24 person. The procurement of insurance of any type by the commission shall
25 not in any way compromise or limit the immunity granted hereunder.

26 3. The commission shall defend any commissioner, officer, executive director,
27 employee, and agent of the commission in any civil action seeking to impose

1 liability arising out of any actual or alleged act, error, or omission that
2 occurred within the scope of commission employment, duties, or
3 responsibilities, or as determined by the commission that the person against
4 whom the claim is made had a reasonable basis for believing occurred
5 within the scope of commission employment, duties, or responsibilities,
6 provided that nothing herein shall be construed to prohibit that person from
7 retaining their own counsel at their own expense, and provided further, that
8 the actual or alleged act, error, or omission did not result from that person's
9 intentional or willful or wanton misconduct.

10 4. The commission shall indemnify and hold harmless any commissioner,
11 member, officer, executive director, employee, and agent of the commission
12 for the amount of any settlement or judgment obtained against that person
13 arising out of any actual or alleged act, error, or omission that occurred
14 within the scope of commission employment, duties, or responsibilities, or
15 that such person had a reasonable basis for believing occurred within the
16 scope of commission employment, duties, or responsibilities, provided that
17 the actual or alleged act, error, or omission did not result from the
18 intentional or willful or wanton misconduct of that person.

19 5. Nothing in this compact shall be interpreted to waive or otherwise abrogate
20 a member state's state action immunity or state action affirmative defense
21 with respect to antitrust claims under the Sherman Act, Clayton Act, or any
22 other state or federal antitrust or anticompetitive law or regulation.

23 6. Nothing in this compact shall be construed to be a waiver of sovereign
24 immunity by the member states or by the commission.

25 7. The liability of the executive director and employees of the compact
26 commission or representatives of the compact commission, acting within the
27 scope of such person's employment or duties for acts, errors, or omissions,

1 may not exceed the limits of liability set forth under the constitution and
2 laws of this state for state officials, employees, and agents. The compact
3 commission is considered to be an instrumentality of the states for the
4 purposes of any such action.

5 SECTION 8.

6 DATA SYSTEM

7 A. The commission shall provide for the development, maintenance, operation, and
8 utilization of a coordinated database and reporting system containing licensure,
9 adverse action, and the presence of significant investigative information.

10 B. Notwithstanding any other provision of state law to the contrary, a member state
11 shall submit a uniform data set to the data system as required by the rules of the
12 commission, including but not limited to:

13 1. Identifying information;

14 2. Licensure data;

15 3. Adverse actions against a licensee, license applicant, or compact privilege
16 holder and information related thereto;

17 4. Nonconfidential information related to alternative program participation,
18 the beginning and ending dates of such participation, and other information
19 related to such participation not made confidential under member state law;

20 5. Any denial of application for licensure, and the reasons for such denial;

21 6. The presence of current significant investigative information; and

22 7. Other information that may facilitate the administration of this compact or
23 the protection of the public, as determined by the rules of the commission.

24 C. No member state shall submit any information which constitutes criminal history
25 record information, as defined by applicable federal law, to the data system
26 established hereunder.

27 D. The records and information provided to a member state pursuant to this compact

1 or through the data system, when certified by the commission or an agent thereof,
2 shall constitute the authenticated business records of the commission, and shall
3 be entitled to any associated hearsay exception in any relevant judicial, quasi-
4 judicial, or administrative proceedings in a member state.

5 E. Significant investigative information pertaining to a licensee in any member state
6 will only be available to other member states.

7 F. It is the responsibility of the member states to report any adverse action against a
8 licensee and to monitor the database to determine whether adverse action has
9 been taken against a licensee. adverse action information pertaining to a licensee
10 in any member state will be available to any other member state.

11 G. Member states contributing information to the data system may designate
12 information that may not be shared with the public without the express
13 permission of the contributing state.

14 H. Any information submitted to the data system that is subsequently expunged
15 pursuant to federal law or the laws of the member state contributing the
16 information shall be removed from the data system.

17 SECTION 9.

18 RULEMAKING

19 A. The commission shall promulgate reasonable rules in order to effectively and
20 efficiently implement and administer the purposes and provisions of the compact.
21 A rule shall be invalid and have no force or effect only if a court of competent
22 jurisdiction holds that the rule is invalid because the commission exercised its
23 rulemaking authority in a manner that is beyond the scope and purposes of the
24 compact, or the powers granted hereunder, or based upon another applicable
25 standard of review.

26 B. For purposes of the compact, the rules of the commission shall have the force of
27 law in each member state.

1 C. The commission shall exercise its rulemaking powers pursuant to the criteria set
2 forth in this section and the rules adopted thereunder. Rules shall become
3 binding as of the date specified in each rule.

4 D. If a majority of the legislatures of the member states rejects a rule or portion of a
5 rule, by enactment of a statute or resolution in the same manner used to adopt the
6 compact within four (4) years of the date of adoption of the rule, then such rule
7 shall have no further force and effect in any member state.

8 E. Rules shall be adopted at a regular or special meeting of the commission.

9 F. Prior to adoption of a proposed rule, the commission shall hold a public hearing
10 and allow persons to provide oral and written comments, data, facts, opinions,
11 and arguments.

12 G. Prior to adoption of a proposed rule by the commission, and at least thirty (30)
13 days in advance of the meeting at which the commission will hold a public
14 hearing on the proposed rule, the commission shall provide a notice of proposed
15 rulemaking:

16 1. On the website of the commission or other publicly accessible platform;

17 2. To persons who have requested notice of the commission's notices of
18 proposed rulemaking, and

19 3. In such other ways as the commission may by rule specify.

20 H. The notice of proposed rulemaking shall include:

21 1. The time, date, and location of the public hearing at which the commission
22 will hear public comments on the proposed rule and, if different, the time,
23 date, and location of the meeting where the commission will consider and
24 vote on the proposed rule;

25 2. If the hearing is held via telecommunication, video conference, or other
26 electronic means, the mechanism for access to the hearing in the notice of
27 proposed rulemaking;

- 1 3. The text of the proposed rule and the reason therefor;
- 2 4. A request for comments on the proposed rule from any interested person;
- 3 and
- 4 5. The manner in which interested persons may submit written comments.
- 5 I. All hearings will be recorded. A copy of the recording and all written comments
- 6 and documents received by the commission in response to the proposed rule shall
- 7 be available to the public.
- 8 J. Nothing in this section shall be construed as requiring a separate hearing on
- 9 each rule. Rules may be grouped for the convenience of the commission at
- 10 hearings required by this section.
- 11 K. The commission shall, by majority vote of all commissioners, take final action on
- 12 the proposed rule based on the rulemaking record and the full text of the rule.
- 13 1. The commission may adopt changes to the proposed rule provided the
- 14 changes are consistent with the original purpose of the proposed rule.
- 15 2. The commission shall provide an explanation of the reasons for substantive
- 16 changes made to the proposed rule as well as reasons for substantive
- 17 changes not made that were recommended by commenters.
- 18 3. The commission shall determine a reasonable effective date for the rule.
- 19 Except for an emergency as provided in subsection L. of this section, the
- 20 effective date of the rule shall be no sooner than thirty (30) days after
- 21 issuing the notice that it adopted or amended the rule.
- 22 L. Upon determination that an emergency exists, the commission may consider and
- 23 adopt an emergency rule with twenty-four (24) hours' notice, and with
- 24 opportunity to comment, provided that the usual rulemaking procedures provided
- 25 in the compact and in this section shall be retroactively applied to the rule as soon
- 26 as reasonably possible, in no event later than ninety (90) days after the effective
- 27 date of the rule. For the purposes of this provision, an emergency rule is one that

1 must be adopted immediately in order to:

2 1. Meet an imminent threat to public health, safety, or welfare;

3 2. Prevent a loss of commission or member state funds;

4 3. Meet a deadline for the promulgation of a rule that is established by federal
5 law or rule; or

6 4. Protect public health and safety.

7 M. The commission or an authorized committee of the commission may direct
8 revisions to a previously adopted rule for purposes of correcting typographical
9 errors, errors in format, errors in consistency, or grammatical errors. Public
10 notice of any revisions shall be posted on the website of the commission. The
11 revision shall be subject to challenge by any person for a period of thirty (30)
12 days after posting. The revision may be challenged only on grounds that the
13 revision results in a material change to a rule. A challenge shall be made in
14 writing and delivered to the commission prior to the end of the notice period. If
15 no challenge is made, the revision will take effect without further action. If the
16 revision is challenged, the revision may not take effect without the approval of the
17 commission.

18 N. No member state's rulemaking process or procedural requirements shall apply to
19 the commission. The commission shall have no authority over any member state's
20 rulemaking process or procedural requirements that do not pertain to the
21 compact.

22 O. Nothing in this compact, nor any rule or regulation of the commission, shall be
23 construed to limit, restrict, or in any way reduce the ability of a member state to
24 enact and enforce laws, regulations, or other rules related to the practice of
25 respiratory therapy in that state, where those laws, regulations, or other rules are
26 not inconsistent with the provisions of this compact.

27 SECTION 10.

1 **OVERSIGHT, DISPUTE RESOLUTION, AND ENFORCEMENT**

2 **A. Oversight.**

3 **1. The executive and judicial branches of state government in each member**
4 **state shall enforce this compact and take all actions necessary and**
5 **appropriate to implement the compact.**

6 **2. Venue is proper and judicial proceedings by or against the commission shall**
7 **be brought solely and exclusively in a court of competent jurisdiction where**
8 **the principal office of the commission is located. The commission may**
9 **waive venue and jurisdictional defenses to the extent it adopts or consents to**
10 **participate in alternative dispute resolution proceedings. Nothing herein**
11 **shall affect or limit the selection or propriety of venue in any action against**
12 **a licensee for professional malpractice, misconduct or any such similar**
13 **matter.**

14 **3. The commission shall be entitled to receive service of process in any**
15 **proceeding regarding the enforcement or interpretation of the compact and**
16 **shall have standing to intervene in such a proceeding for all purposes.**
17 **Failure to provide the commission service of process shall render a**
18 **judgment or order void as to the commission, this compact, or promulgated**
19 **rules.**

20 **B. Default, Technical Assistance, and Termination.**

21 **1. If the commission determines that a member state has defaulted in the**
22 **performance of its obligations or responsibilities under this compact or the**
23 **promulgated rules, the commission shall provide written notice to the**
24 **defaulting state. The notice of default shall describe the default, the**
25 **proposed means of curing the default, and any other action that the**
26 **commission may take, and shall offer training and specific technical**
27 **assistance regarding the default.**

1 2. The commission shall provide a copy of the notice of default to the other
2 member states.

3 C. If a state in default fails to cure the default, the defaulting state may be
4 terminated from the compact upon an affirmative vote of a majority of the
5 commissioners of the member states, and all rights, privileges, and benefits
6 conferred on that state by this compact may be terminated on the effective date of
7 termination. A cure of the default does not relieve the offending state of
8 obligations or liabilities incurred during the period of default.

9 D. Termination of membership in the compact shall be imposed only after all other
10 means of securing compliance have been exhausted. Notice of intent to suspend
11 or terminate shall be given by the commission to the governor, the majority and
12 minority leaders of the defaulting state's legislature, the defaulting state's
13 respiratory therapy licensing authority and each of the member states' respiratory
14 therapy licensing authorities.

15 E. A state that has been terminated is responsible for all assessments, obligations,
16 and liabilities incurred through the effective date of termination, including
17 obligations that extend beyond the effective date of termination, if necessary.

18 F. Upon the termination of a state's membership from this compact, that state shall
19 immediately provide notice to all licensees and compact privilege holders, of
20 which the commission has a record, within that state of such termination. The
21 terminated state shall continue to recognize all licenses granted pursuant to this
22 compact for a minimum of one hundred eighty (180) days after the date of said
23 notice of termination.

24 G. The commission shall not bear any costs related to a state that is found to be in
25 default or that has been terminated from the compact, unless agreed upon in
26 writing between the commission and the defaulting state.

27 H. The defaulting state may appeal the action of the commission by petitioning the

1 United States District Court for the District of Columbia or the federal district
2 where the commission has its principal offices. The prevailing party shall be
3 awarded all costs of such litigation, including reasonable attorney's fees.

4 I. Dispute Resolution.

5 1. Upon request by a member state, the commission shall attempt to resolve
6 disputes related to the compact that arise among member states and between
7 member and nonmember states.

8 2. The commission shall promulgate a rule providing for both mediation and
9 binding dispute resolution for disputes, as appropriate.

10 J. Enforcement.

11 1. By majority vote, as may be further provided by rule, the commission may
12 initiate legal action against a member state in default in the United States
13 District Court for the District of Columbia or the federal district where the
14 commission has its principal offices to enforce compliance with the
15 provisions of the compact and its promulgated rules. A member state by
16 enactment of this compact consents to venue and jurisdiction in such court
17 for the purposes set forth herein. The relief sought may include both
18 injunctive relief and damages. In the event judicial enforcement is
19 necessary, the prevailing party shall be awarded all costs of such litigation,
20 including reasonable attorney's fees. The remedies herein shall not be the
21 exclusive remedies of the commission. The commission may pursue any
22 other remedies available under federal or the defaulting member state's law.

23 2. A member state may initiate legal action against the commission in the
24 United States District Court for the District of Columbia or the federal
25 district where the commission has its principal offices to enforce
26 compliance with the provisions of the compact and its promulgated rules.
27 The relief sought may include both injunctive relief and damages. In the

- 1 event judicial enforcement is necessary, the prevailing party shall be
2 awarded all costs of such litigation, including reasonable attorney's fees.
3 3. No person other than a member state shall enforce this compact against the
4 commission.

5 SECTION 11.

6 EFFECTIVE DATE, WITHDRAWAL, AND AMENDMENT

- 7 A. The compact shall come into effect on the date on which the compact statute is
8 enacted into law in the seventh member state.

- 9 1. On or after the effective date of the compact, the commission shall convene
10 and review the enactment of each of the first seven (7) member states to
11 determine if the statute enacted by each such charter member state is
12 materially different than the model compact.

- 13 a. A charter member state whose enactment is found to be materially
14 different from the model compact shall be entitled to the default
15 process set forth in Section 10 of this compact.

- 16 b. If any member state is later found to be in default, or is terminated or
17 withdraws from the compact, the commission shall remain in
18 existence and the compact shall remain in effect even if the number of
19 member states should be less than seven (7).

- 20 2. Member states enacting the compact subsequent to the seven (7) initial
21 charter member states shall be subject to the process set forth herein and
22 commission rule to determine if their enactments are materially different
23 from the model compact and whether they qualify for participation in the
24 compact.

- 25 3. All actions taken for the benefit of the commission or in furtherance of the
26 purposes of the administration of the compact prior to the effective date of
27 the compact or the commission coming into existence shall be considered to

1 be actions of the commission unless specifically repudiated by the
2 commission. The commission shall own and have all rights to any
3 intellectual property developed on behalf or in furtherance of the
4 commission by individuals or entities involved in organizing or establishing
5 the commission, as may be further set forth in rules of the commission.

6 4. Any state that joins the compact subsequent to the commission's initial
7 adoption of the rules and bylaws shall be subject to the rules and bylaws as
8 they exist on the date on which the compact becomes law in that state. Any
9 rule that has been previously adopted by the commission shall have the full
10 force and effect of law on the date the compact becomes law in that state.

11 B. Any member state may withdraw from this compact by enacting a statute
12 repealing the same.

13 1. A member state's withdrawal shall not take effect until one hundred eighty
14 (180) days after enactment of the repealing statute.

15 2. Withdrawal shall not affect the continuing requirement of the withdrawing
16 state's respiratory therapy licensing authority to comply with the
17 investigative and adverse action reporting requirements of this compact
18 prior to the effective date of withdrawal.

19 3. Upon the enactment of a statute withdrawing from this compact, a state
20 shall immediately provide notice of such withdrawal to all licensees and
21 compact privilege holders, of which the commission has a record, within
22 that state. Notwithstanding any subsequent statutory enactment to the
23 contrary, such withdrawing state shall continue to recognize all licenses
24 granted pursuant to this compact for a minimum of one hundred eighty
25 (180) days after the date of such notice of withdrawal.

26 C. Nothing contained in this compact shall be construed to invalidate or prevent any
27 licensure agreement or other cooperative arrangement between a member state

1 and a nonmember state that does not conflict with the provisions of this compact.

2 D. This compact may be amended by the member states. No amendment to this
3 compact shall become effective and binding upon any member state until it is
4 enacted into the laws of all member states.

5 SECTION 12.

6 CONSTRUCTION AND SEVERABILITY

7 A. This compact and the commission's rulemaking authority shall be liberally
8 construed so as to effectuate the purposes and the implementation and
9 administration of the compact. Provisions of the compact expressly authorizing or
10 requiring the promulgation of rules shall not be construed to limit the
11 commission's rulemaking authority solely for those purposes.

12 B. The provisions of this compact shall be severable, and if any phrase, clause,
13 sentence or provision of this compact is held by a court of competent jurisdiction
14 to be contrary to the constitution of any member state, a state seeking
15 participation in the compact, or of the United States, or the applicability thereof
16 to any government, agency, person, or circumstance is held to be unconstitutional
17 by a court of competent jurisdiction, the validity of the remainder of this compact
18 and the applicability thereof to any other government, agency, person, or
19 circumstance shall not be affected thereby.

20 C. Notwithstanding subsection B. of this section, the commission may deny a state's
21 participation in the compact or, in accordance with the requirements of Section
22 10 of this compact, terminate a member state's participation in the compact, if it
23 determines that a constitutional requirement of a member state is a material
24 departure from the compact. Otherwise, if this compact shall be held to be
25 contrary to the constitution of any member state, the compact shall remain in full
26 force and effect as to the remaining member states and in full force and effect as
27 to the member state affected as to all severable matters.

1 SECTION 13.

2 CONSISTENT EFFECT AND CONFLICT WITH OTHER STATE LAWS

3 A. Nothing herein shall prevent or inhibit the enforcement of any other law of a
4 member state that is not inconsistent with the compact.

5 B. Any laws, statutes, regulations, or other legal requirements in a member state in
6 conflict with the compact are superseded to the extent of the conflict, including
7 any subsequently enacted state laws.

8 C. All permissible agreements between the commission and the member states are
9 binding in accordance with their terms.

10 D. Other than as expressly set forth herein, nothing in this compact will impact
11 initial licensure.

12 SECTION 14.

13 APPLICABILITY TO KENTUCKY STATE GOVERNMENT

14 In order to clarify the effect of certain provisions of this compact and to ensure that the
15 rights and responsibilities of the various branches of government are maintained, the
16 following shall be in effect in this state:

17 A. By entering into this compact, this state authorizes the state respiratory therapy
18 licensing authority as defined in Section 2.W. of this compact and as created by
19 KRS 314A.200 to implement the provisions of this compact;

20 B. Notwithstanding any provision of this compact to the contrary:

21 1. When a rule is adopted pursuant to Section 9 of this compact, the state
22 respiratory therapy licensing authority as defined in Section 2.W. of this
23 compact shall have sixty (60) days to review the rule for the purpose of
24 filing the rule as an emergency administrative regulation pursuant to KRS
25 13A.190 and for filing the rule as an accompanying ordinary administrative
26 regulation, in accordance with the requirements in KRS Chapter 13A.
27 Failure by the state respiratory therapy licensing authority as defined in

1 Section 2.W. of this compact to promulgate a rule adopted by the
2 Respiratory Care Interstate Compact Commission as an administrative
3 regulation pursuant to KRS Chapter 13A shall result in the initiation of the
4 process for withdrawal as set forth in Section 11 of this compact. Nothing in
5 these provisions shall negate the applicability and effect of a commission
6 rule or Section 9 of this compact to this state;

7 2. If the proposed administrative regulation is found deficient and the
8 deficiency is not resolved pursuant to KRS 13A.330 or 13A.335, the
9 provisions of Section 10 of this compact shall apply. If the deficiency is
10 resolved in a manner determined by the Respiratory Care Interstate
11 Compact Commission to be inconsistent with this compact or its rules, or if
12 the procedures under Section 10 of this compact fail to resolve an issue, the
13 withdrawal provisions of Section 11 of this compact shall apply; and

14 3. If a court of competent jurisdiction determines that the Respiratory Care
15 Interstate Compact Commission created by Section 7 of this compact
16 exercises its rulemaking authority in a manner that is beyond the scope of
17 the purposes of this compact, or the powers granted under this compact,
18 then such an action by the commission shall be invalid and have no force or
19 effect;

20 C. Section 7.G. of this compact pertaining to the financing of the Respiratory Care
21 Interstate Compact Commission shall not be interpreted to obligate the general
22 fund of this state. Any funds used to finance this compact shall be from money
23 collected pursuant to KRS 314A.215; and

24 D. This compact shall apply only to those respiratory therapists who practice or work
25 under a compact privilege.

26 ➔SECTION 2. A NEW SECTION OF KRS CHAPTER 310 IS CREATED TO
27 READ AS FOLLOWS:

SECTION 1.

PURPOSE

The purpose of this compact is to facilitate interstate practice of dietetics with the goal of improving public access to dietetics services. This compact preserves the regulatory authority of states to protect public health and safety through the current system of state licensure, while also providing for licensure portability through a compact privilege granted to qualifying professionals. This compact is designed to achieve the following objectives:

A. Increase public access to dietetics services;

B. Provide opportunities for interstate practice by licensed dietitians who meet uniform requirements;

C. Eliminate the necessity for licenses in multiple states;

D. Reduce administrative burden on member states and licensees;

E. Enhance the states' ability to protect the public's health and safety;

F. Encourage the cooperation of member states in regulating multistate practice of licensed dietitians;

G. Support relocating active military members and their spouses;

H. Enhance the exchange of licensure, investigative, and disciplinary information
among member states; and

I. Vest all member states with the authority to hold a licensed dietitian accountable for meeting all state practice laws in the state in which the patient is located at the time care is rendered.

SECTION 2.

DEFINITIONS

As used in this compact, and except as otherwise provided, the following definitions shall apply:

A. "ACEND" means the Accreditation Council for Education in Nutrition and

- 1 Dietetics or its successor organization;
- 2 B. "Active military member" means any individual with full-time duty status in the
3 active Armed Forces of the United States, including members of the National
4 Guard and Reserve;
- 5 C. "Adverse action" means any administrative, civil, equitable, or criminal action
6 permitted by a state's laws which is imposed by a licensing authority or other
7 authority against a licensee, including actions against an individual's license or
8 compact privilege such as revocation, suspension, probation, monitoring of the
9 licensee, limitation on the licensee's practice, or any other encumbrance on
10 licensure affecting a licensee's authorization to practice, including issuance of a
11 cease and desist action;
- 12 D. "Alternative program" means a nondisciplinary monitoring or practice
13 remediation process approved by a licensing authority;
- 14 E. "CDR" means the Commission on Dietetic Registration or its successor
15 organization;
- 16 F. "Charter member state" means any member state which enacted this compact by
17 law before the effective date specified in Section 12 of this compact;
- 18 G. "Compact commission" means the government agency whose membership
19 consists of all states that have enacted this compact, which is known as the
20 Dietitian Licensure Compact Commission, as described in Section 8 of this
21 compact, and which shall operate as an instrumentality of the member states;
- 22 H. "Compact privilege" means a legal authorization, which is equivalent to a
23 license, permitting the practice of dietetics in a remote state;
- 24 I. "Continuing education" means a requirement, as a condition of license renewal,
25 to provide evidence of participation in, and completion of, educational and
26 professional activities relevant to practice or area of work;
- 27 J. "Current significant investigative information" means:

- 1 1. Investigative information that a licensing authority, after a preliminary
2 inquiry that includes notification and an opportunity for the subject licensee
3 to respond, if required by state law, has reason to believe is not groundless
4 and, if proved true, would indicate more than a minor infraction; or
5 2. Investigative information that indicates that the subject licensee represents
6 an immediate threat to public health and safety regardless of whether the
7 subject licensee has been notified and had an opportunity to respond;
8 K. "Data system" means a repository of information about licensees, including but
9 not limited to continuing education, examination, licensure, investigative,
10 compact privilege, and adverse action information;
11 L. "Encumbered license" means a license in which an adverse action restricts a
12 licensee's ability to practice dietetics;
13 M. "Encumbrance" means a revocation or suspension of, or any limitation on, a
14 licensee's full and unrestricted practice of dietetics by a licensing authority;
15 N. "Executive committee" means a group of delegates elected or appointed to act on
16 behalf of, and within the powers granted to them by, this compact and the
17 compact commission;
18 O. "Home state" means the member state that is the licensee's primary state of
19 residence or that has been designated pursuant to Section 6 of this compact;
20 P. "Investigative information" means information, records, and documents received
21 or generated by a licensing authority pursuant to an investigation;
22 Q. "Jurisprudence requirement" means an assessment of an individual's knowledge
23 of the state laws and regulations governing the practice of dietetics in such state;
24 R. "License" means an authorization from a member state to either:
25 1. Engage in the practice of dietetics, including medical nutrition therapy; or
26 2. Use the title "dietitian," "licensed dietitian," "licensed dietitian
27 nutritionist," "certified dietitian," or other title describing a substantially

1 similar practitioner as the compact commission may further define by rule;

2 S. "Licensee" or "licensed dietitian" means an individual who currently holds a
3 license and who meets all of the requirements outlined in Section 4 of this
4 compact;

5 T. "Licensing authority" means the board or agency of a state, or equivalent, that is
6 responsible for the licensing and regulation of the practice of dietetics;

7 U. "Member state" means a state that has enacted the compact;

8 V. "Practice of dietetics" means the synthesis and application of dietetics as defined
9 by state law and administrative regulations, primarily for the provision of
10 nutrition care services, including medical nutrition therapy, in person or via
11 telehealth, to prevent, manage, or treat diseases or medical conditions and
12 promote wellness;

13 W. "Registered dietitian" means a person who:

14 1. Has completed applicable education, experience, examination, and
15 recertification requirements approved by CDR;

16 2. Is credentialed by CDR as a registered dietitian or a registered dietitian
17 nutritionist; and

18 3. Is legally authorized to use the title registered dietitian or registered dietitian
19 nutritionist and the corresponding abbreviations "RD" or "RDN";

20 X. "Remote state" means a member state other than the home state, where a
21 licensee is exercising or seeking to exercise a compact privilege;

22 Y. "Rule" means a regulation promulgated by the compact commission that has the
23 force of law;

24 Z. "Single state license" means a license issued by a member state within the
25 issuing state and does not include a compact privilege in any other member state;

26 AA. "State" means any state, commonwealth, district, or territory of the United States
27 of America; and

1 AB. "Unencumbered license" means a license that authorizes a licensee to engage in
2 the full and unrestricted practice of dietetics.

3 SECTION 3.

4 STATE PARTICIPATION IN THE COMPACT

5 A. To participate in the compact, a state must currently:

6 1. License and regulate the practice of dietetics; and

7 2. Have a mechanism in place for receiving and investigating complaints
8 about licensees.

9 B. A member state shall:

10 1. Participate fully in the compact commission's data system, including using
11 the unique identifier as defined in the rules;

12 2. Notify the compact commission, in compliance with the terms of the
13 compact and rules, of any adverse action or the availability of current
14 significant investigative information regarding a licensee;

15 3. Implement or utilize procedures for considering the criminal history record
16 information of applicants for an initial compact privilege. These procedures
17 shall include the submission of fingerprints or other biometric-based
18 information by applicants for the purpose of obtaining an applicant's
19 criminal history record information from the Federal Bureau of
20 Investigation and the agency responsible for retaining that state's criminal
21 records.

22 a. A member state must fully implement a criminal history record
23 information requirement, within a time frame established by rule,
24 which includes receiving the results of the Federal Bureau of
25 Investigation record search and shall use those results in determining
26 compact privilege eligibility.

27 b. Communication between a member state and the compact commission

1 or among member states regarding the verification of eligibility for a
2 compact privilege shall not include any information received from the
3 Federal Bureau of Investigation relating to a federal criminal history
4 record information check performed by a member state;

5 4. Comply with and enforce the rules of the compact commission;

6 5. Require an applicant for a compact privilege to obtain or retain a license in
7 the licensee's home state and meet the home state's qualifications for
8 licensure or renewal of licensure, as well as all other applicable state laws;
9 and

10 6. Recognize a compact privilege granted to a licensee who meets all of the
11 requirements outlined in Section 4 of this compact in accordance with the
12 terms of the compact and rules.

13 C. Member states may set and collect a fee for granting a compact privilege.

14 D. Individuals not residing in a member state shall continue to be able to apply for a
15 member state's single state license as provided under the laws of each member
16 state. However, the single state license granted to these individuals shall not be
17 recognized as granting a compact privilege to engage in the practice of dietetics
18 in any other member state.

19 E. Nothing in this compact shall affect the requirements established by a member
20 state for the issuance of a single state license.

21 F. At no point shall the compact commission have the power to define the
22 requirements for the issuance of a single state license to practice dietetics. The
23 member states shall retain sole jurisdiction over the provision of these
24 requirements.

25 SECTION 4.

26 COMPACT PRIVILEGE

27 A. To exercise the compact privilege under the terms and provisions of the compact,

1 the licensee shall:

2 1. Satisfy one (1) of the following:

3 a. Hold a valid current registration that gives the applicant the right to
4 use the term registered dietitian; or

5 b. Complete all of the following:

6 i. An education program which is either:

7 (a) A master's degree or doctoral degree that is
8 programmatically accredited by ACEND or by a dietetics
9 accrediting agency recognized by the United States Department
10 of Education, which the compact commission may by rule
11 determine, and from a college or university accredited at the time
12 of graduation by the appropriate regional accrediting agency
13 recognized by the Council on Higher Education Accreditation
14 and the United States Department of Education; or

15 (b) An academic degree from a college or university in a
16 foreign country equivalent to the degree described in subsection
17 A.1.b.i. of this section that is programmatically accredited by
18 ACEND or by a dietetics accrediting agency recognized by the
19 United States Department of Education, which the compact
20 commission may by rule determine;

21 ii. A planned, documented, supervised practice experience in
22 dietetics that is programmatically accredited by ACEND or by a
23 dietetics accrediting agency recognized by the United States
24 Department of Education which the compact commission may by
25 rule determine and which involves at least one thousand (1,000)
26 hours of practice experience under the supervision of a
27 registered dietitian or a licensed dietitian; and

- 1 iii. Successful completion of either the registration examination for
2 dietitians administered by CDR or a national credentialing
3 examination for dietitians approved by the compact commission
4 by rule, with such completion being no more than five (5) years
5 prior to the date of the licensee's application for initial licensure
6 and accompanied by a period of continuous licensure thereafter,
7 all of which may be further governed by the Rules of the
8 compact commission;
- 9 2. Hold an unencumbered license in the home state;
10 3. Notify the compact commission that the licensee is seeking a compact
11 privilege within a remote state or states;
12 4. Pay any applicable fees, including any state fee, for the compact privilege;
13 5. Meet any jurisprudence requirements established by the remote state or
14 states in which the licensee is seeking a compact privilege; and
15 6. Report to the compact commission any adverse action, encumbrance, or
16 restriction on a license taken by any nonmember state within thirty (30)
17 days from the date the action is taken.
- 18 B. The compact privilege is valid until the expiration date of the home state license.
19 To maintain a compact privilege, renewal of the compact privilege shall be
20 congruent with the renewal of the home state license as the compact commission
21 may define by rule. The licensee must comply with the requirements of subsection
22 A. of this section to maintain the compact privilege in the remote state or states.
- 23 C. A licensee exercising a compact privilege shall adhere to the laws and regulations
24 of the remote state. Licensees shall be responsible for educating themselves on,
25 and complying with, any and all state laws relating to the practice of dietetics in
26 such remote state.
- 27 D. Notwithstanding anything to the contrary provided in this compact or state law, a

1 licensee exercising a compact privilege shall not be required to complete
2 continuing education requirements required by a remote state. A licensee
3 exercising a compact privilege is only required to meet any continuing education
4 requirements as required by the home state.

5 SECTION 5.

6 OBTAINING A NEW HOME STATE LICENSE BASED ON A COMPACT

7 PRIVILEGE

8 A. A licensee may hold a home state license, which allows for a compact privilege in
9 other member states, in only one (1) member state at a time.

10 B. If a licensee changes home state by moving between two (2) member states:

11 1. The licensee shall file an application for obtaining a new home state license
12 based on a compact privilege, pay all applicable fees, and notify the current
13 and new home state in accordance with the rules of the compact
14 commission;

15 2. Upon receipt of an application for obtaining a new home state license by
16 virtue of a compact privilege, the new home state shall verify that the
17 licensee meets the criteria in Section 4 of this compact via the data system,
18 and require that the licensee complete the following:

19 a. Federal Bureau of Investigation fingerprint based criminal history
20 record information check;

21 b. Any other criminal history record information required by the new
22 home state; and

23 c. Any jurisprudence requirements of the new home state;

24 3. The former home state shall convert the former home state license into a
25 compact privilege once the new home state has activated the new home state
26 license in accordance with applicable rules adopted by the compact
27 commission;

1 4. Notwithstanding any other provision of this compact, if the licensee cannot
2 meet the criteria in Section 4 of this compact, the new home state may apply
3 its requirements for issuing a new single state license; and

4 5. The licensee shall pay all applicable fees to the new home state in order to
5 be issued a new home state license.

6 C. If a licensee changes their state of residence by moving from a member state to a
7 nonmember state, or from a nonmember state to a member state, the state criteria
8 shall apply for issuance of a single state license in the new state.

9 D. Nothing in this compact shall interfere with a licensee's ability to hold a single
10 state license in multiple states; however, for the purposes of this compact, a
11 licensee shall have only one (1) home state license.

12 E. Nothing in this compact shall affect the requirements established by a member
13 state for the issuance of a single state license.

14 SECTION 6.

15 ACTIVE MILITARY MEMBERS OR THEIR SPOUSES

16 An active military member, or their spouse, shall designate a home state where the
17 individual has a current license in good standing. The individual may retain the home
18 state designation during the period the service member is on active duty.

19 SECTION 7.

20 ADVERSE ACTIONS

21 A. In addition to the other powers conferred by state law, a remote state shall have
22 the authority, in accordance with existing state due process law, to:

23 1. Take adverse action against a licensee's compact privilege within that
24 member state; and

25 2. Issue subpoenas for both hearings and investigations that require the
26 attendance and testimony of witnesses as well as the production of evidence.

27 Subpoenas issued by a licensing authority in a member state for the

1 attendance and testimony of witnesses or the production of evidence from
2 another member state shall be enforced in the latter state by any court of
3 competent jurisdiction, according to the practice and procedure applicable
4 to subpoenas issued in proceedings pending before that court. The issuing
5 authority shall pay any witness fees, travel expenses, mileage, and other fees
6 required by the service statutes of the state in which the witnesses or
7 evidence are located.

8 B. Only the home state shall have the power to take adverse action against a
9 licensee's home state license.

10 C. For purposes of taking adverse action, the home state shall give the same priority
11 and effect to reported conduct received from a member state as it would if the
12 conduct had occurred within the home state. In so doing, the home state shall
13 apply its own state laws to determine appropriate action.

14 D. The home state shall complete any pending investigations of a licensee who
15 changes home states during the course of the investigations. The home state shall
16 also have authority to take appropriate action and shall promptly report the
17 conclusions of the investigations to the administrator of the data system. The
18 administrator of the data system shall promptly notify the new home state of any
19 adverse actions.

20 E. A member state, if otherwise permitted by state law, may recover from the affected
21 licensee the costs of investigations and dispositions of cases resulting from any
22 adverse action taken against that licensee.

23 F. A member state may take adverse action based on the factual findings of another
24 remote state, provided that the member state follows its own procedures for taking
25 the adverse action.

26 G. Joint Investigations:

27 1. In addition to the authority granted to a member state by its respective state

1 law, any member state may participate with other member states in joint
2 investigations of licensees.

3 2. Member states shall share any investigative, litigation, or compliance
4 materials in furtherance of any joint investigation initiated under the
5 compact.

6 H. If adverse action is taken by the home state against a licensee's home state
7 resulting in an encumbrance on the home state license, the licensee's compact
8 privilege in all other member states shall be revoked until all encumbrances have
9 been removed from the home state license. All home state disciplinary orders that
10 impose adverse action against a licensee shall include a statement that the
11 licensee's compact privileges are revoked in all member states during the
12 pendency of the order.

13 I. Once an encumbered license in the home state is restored to an unencumbered
14 license, as certified by the home state's licensing authority, the licensee must meet
15 the requirements of Section 4A. of this compact and follow the administrative
16 requirements to reapply to obtain a compact privilege in any remote state.

17 J. If a member state takes adverse action, it shall promptly notify the administrator
18 of the data system. The administrator of the data system shall promptly notify the
19 other member states state of any adverse actions.

20 K. Nothing in this compact shall override a member state's decision that
21 participation in an alternative program may be used in lieu of adverse action.

22 SECTION 8.

23 ESTABLISHMENT OF THE DIETITIAN LICENSURE COMPACT COMMISSION

24 A. The compact member states hereby create and establish a joint government
25 agency whose membership consists of all member states that have enacted the
26 compact known as the Dietitian Licensure Compact Commission. The compact
27 commission is an instrumentality of the compact states acting jointly and not an

1 instrumentality of any one (1) state. The compact commission shall come into
2 existence on or after the effective date of the compact as set forth in Section 12 of
3 this compact.

4 **B. Membership, Voting, and Meetings.**

5 1. Each member state shall have and be limited to one (1) delegate selected by
6 that member state's licensing authority.

7 2. The delegate shall be the primary administrator of the licensing authority or
8 their designee.

9 3. The compact commission shall by rule or bylaw establish a term of office
10 for delegates and may by rule or bylaw establish term limits.

11 4. The compact commission may recommend removal or suspension of any
12 delegate from office.

13 5. A member state's licensing authority shall fill any vacancy of its delegate
14 occurring on the compact commission within sixty (60) days of the vacancy.

15 6. Each delegate shall be entitled to one (1) vote on all matters before the
16 compact commission requiring a vote by the delegates.

17 7. Delegates shall meet and vote by such means as set forth in the bylaws. The
18 bylaws may provide for delegates to meet and vote in-person or by
19 telecommunication, video conference, or other means of communication.

20 8. The compact commission shall meet at least once during each calendar
21 year. Additional meetings may be held as set forth in the bylaws. The
22 compact commission may meet in person or by telecommunication, video
23 conference, or other means of communication.

24 **C. The compact commission shall have the following powers:**

25 1. Establish the fiscal year of the compact commission;

26 2. Establish code of conduct and conflict of interest policies;

27 3. Establish and amend rules and bylaws;

- 1 4. Maintain its financial records in accordance with the bylaws;
- 2 5. Meet and take such actions as are consistent with the provisions of this
- 3 compact, the compact commission's rules, and the bylaws;
- 4 6. Initiate and conclude legal proceedings or actions in the name of the
- 5 compact commission, provided that the standing of any licensing authority
- 6 to sue or be sued under applicable law shall not be affected;
- 7 7. Maintain and certify records and information provided to a member state as
- 8 the authenticated business records of the compact commission, and
- 9 designate an agent to do so on the compact commission's behalf;
- 10 8. Purchase and maintain insurance and bonds;
- 11 9. Borrow, accept, or contract for services of personnel, including but not
- 12 limited to employees of a member state;
- 13 10. Conduct an annual financial review;
- 14 11. Hire employees, elect or appoint officers, fix compensation, define duties,
- 15 grant such individuals appropriate authority to carry out the purposes of the
- 16 compact, and establish the compact commission's personnel policies and
- 17 programs relating to conflicts of interest, qualifications of personnel, and
- 18 other related personnel matters;
- 19 12. Assess and collect fees;
- 20 13. Accept any and all appropriate donations, grants of money, other sources of
- 21 revenue, equipment, supplies, materials, services, and gifts, and receive,
- 22 utilize, and dispose of the same; provided that at all times the compact
- 23 commission shall avoid any actual or appearance of impropriety or conflict
- 24 of interest;
- 25 14. Lease, purchase, retain, own, hold, improve, or use any property, real,
- 26 personal, or mixed, or any undivided interest therein;
- 27 15. Sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise

1 dispose of any property, real, personal, or mixed;

2 16. Establish a budget and make expenditures;

3 17. Borrow money;

4 18. Appoint committees, including standing committees, composed of members,
5 state regulators, state legislators or their representatives, consumer
6 representatives, and such other interested persons as may be designated in
7 this compact or the bylaws;

8 19. Provide and receive information from, and cooperate with, law enforcement
9 agencies;

10 20. Establish and elect an executive committee, including a chair and a vice
11 chair;

12 21. Determine whether a state's adopted language is materially different from
13 the model compact language such that the state would not qualify for
14 participation in the compact; and

15 22. Perform such other functions as may be necessary or appropriate to achieve
16 the purposes of this compact.

17 D. The Executive Committee.

18 1. The executive committee shall have the power to act on behalf of the
19 compact commission according to the terms of this compact. The powers,
20 duties, and responsibilities of the executive committee shall include:

21 a. Oversee the day-to-day activities of the administration of the compact
22 including enforcement and compliance with the provisions of the
23 compact, its rules and bylaws, and other such duties as deemed
24 necessary;

25 b. Recommend to the compact commission changes to the rules or
26 bylaws, changes to this compact legislation, fees charged to compact
27 member states, fees charged to licensees, and other fees;

- c. Ensure compact administration services are appropriately provided, including by contract;
 - d. Prepare and recommend the budget;
 - e. Maintain financial records on behalf of the compact commission;
 - f. Monitor compact compliance of member states and provide compliance reports to the compact commission;
 - g. Establish additional committees as necessary;
 - h. Exercise the powers and duties of the compact commission during the interim between compact commission meetings, except for adopting or amending rules, adopting or amending bylaws, and exercising any other powers and duties expressly reserved to the compact commission by rule or bylaw; and
 - i. Other duties as provided in the rules or bylaws of the compact commission.
 2. The executive committee shall be composed of nine (9) members:
 - a. The chair and vice chair of the compact commission shall be voting members of the executive committee;
 - b. Five (5) voting members from the current membership of the compact commission, elected by the compact commission;
 - c. One (1) ex officio, nonvoting member from a recognized professional association representing dietitians; and
 - d. One (1) ex officio, nonvoting member from a recognized national credentialing organization for dietitians.
 3. The compact commission may remove any member of the executive committee as provided in the compact commission's bylaws.
 4. The executive committee shall meet at least annually.
 - a. Executive committee meetings shall be open to the public, except that

1 the executive committee may meet in a closed, nonpublic meeting as
2 provided in subsection F.2. of this section.

3 b. The executive committee shall give thirty (30) days' notice of its
4 meetings, posted on the website of the compact commission and as
5 determined to provide notice to persons with an interest in the business
6 of the compact commission.

7 c. The executive committee may hold a special meeting in accordance
8 with subsection F.1.b. of this section.

9 E. The compact commission shall adopt and provide to the member states an annual
10 report.

11 F. Meetings of the Compact Commission.

12 1. All meetings shall be open to the public, except that the compact
13 commission may meet in a closed, nonpublic meeting as provided in
14 subsection F.2. of this section.

15 a. Public notice for all meetings of the full compact commission shall be
16 given in the same manner as required under the rulemaking
17 provisions in Section 10 of this compact, except that the compact
18 commission may hold a special meeting as provided in subsection
19 F.1.b. of this section.

20 b. The compact commission may hold a special meeting when it must
21 meet to conduct emergency business by giving twenty-four (24) hours'
22 notice to all member states, on the compact commission's website, and
23 other means as provided in the compact commission's rules. The
24 compact commission's legal counsel shall certify that the compact
25 commission's need to meet qualifies as an emergency.

26 2. The compact commission or the executive committee or other committees of
27 the compact commission may convene in a closed, nonpublic meeting for

- 1 the compact commission or executive committee or other committees of the
2 compact commission to receive legal advice or to discuss:
- 3 a. Noncompliance of a member state with its obligations under the
4 compact;
- 5 b. The employment, compensation, discipline, or other matters, practices,
6 or procedures related to specific employees;
- 7 c. Current or threatened discipline of a licensee by the compact
8 commission or by a member state's licensing authority;
- 9 d. Current, threatened, or reasonably anticipated litigation;
- 10 e. Negotiation of contracts for the purchase, lease, or sale of goods,
11 services, or real estate;
- 12 f. Accusing any person of a crime or formally censuring any person;
- 13 g. Trade secrets or commercial or financial information that is privileged
14 or confidential;
- 15 h. Information of a personal nature where disclosure would constitute a
16 clearly unwarranted invasion of personal privacy;
- 17 i. Investigative records compiled for law enforcement purposes;
- 18 j. Information related to any investigative reports prepared by or on
19 behalf of or for use of the compact commission or other committee
20 charged with responsibility of investigation or determination of
21 compliance issues pursuant to the compact;
- 22 k. Matters specifically exempted from disclosure by federal or member
23 state law; or
- 24 l. Other matters as specified in the rules of the compact commission.
- 25 3. If a meeting, or portion of a meeting, is closed, the presiding officer shall
26 state that the meeting will be closed and reference each relevant exempting
27 provision, and such reference shall be recorded in the minutes.

1 4. The compact commission shall keep minutes that fully and clearly describe
2 all matters discussed in a meeting and shall provide a full and accurate
3 summary of actions taken, and the reasons therefore, including a
4 description of the views expressed. All documents considered in connection
5 with an action shall be identified in such minutes. All minutes and
6 documents of a closed meeting shall remain under seal, subject to release
7 only by a majority vote of the compact commission or order of a court of
8 competent jurisdiction.

9 G. Financing of the Compact Commission.

10 1. The compact commission shall pay, or provide for the payment of, the
11 reasonable expenses of its establishment, organization, and ongoing
12 activities.

13 2. The compact commission may accept any and all appropriate revenue
14 sources as provided in subsection C.13. of this section.

15 3. The compact commission may levy on and collect an annual assessment
16 from each member state and impose fees on licensees of member states to
17 whom it grants a compact privilege to cover the cost of the operations and
18 activities of the compact commission and its staff, which must, in a total
19 amount, be sufficient to cover its annual budget as approved each year for
20 which revenue is not provided by other sources. The aggregate annual
21 assessment amount for member states shall be allocated based upon a
22 formula that the compact commission shall promulgate by rule.

23 4. The compact commission shall not incur obligations of any kind prior to
24 securing the funds adequate to meet the same; nor shall the compact
25 commission pledge the credit of any of the member states, except by and
26 with the authority of the member state.

27 5. The compact commission shall keep accurate accounts of all receipts and

1 disbursements. The receipts and disbursements of the compact commission
2 shall be subject to the financial review and accounting procedures
3 established under its bylaws. However, all receipts and disbursements of
4 funds handled by the compact commission shall be subject to an annual
5 financial review by a certified or licensed public accountant, and the report
6 of the financial review shall be included in and become part of the annual
7 report of the compact commission.

8 H. Qualified Immunity, Defense, and Indemnification.

9 1. The members, officers, executive director, employees, and representatives of
10 the compact commission shall be immune from suit and liability, both
11 personally and in their official capacity, for any claim for damage to or loss
12 of property or personal injury or other civil liability caused by or arising out
13 of any actual or alleged act, error, or omission that occurred, or that the
14 person against whom the claim is made had a reasonable basis for believing
15 occurred, within the scope of compact commission employment, duties, or
16 responsibilities; provided that nothing in this paragraph shall be construed
17 to protect any such person from suit or liability for any damage, loss, injury,
18 or liability caused by the intentional or willful or wanton misconduct of that
19 person. The procurement of insurance of any type by the compact
20 commission shall not in any way compromise or limit the immunity granted
21 hereunder.

22 2. The compact commission shall defend any member, officer, executive
23 director, employee, and representative of the compact commission in any
24 civil action seeking to impose liability arising out of any actual or alleged
25 act, error, or omission that occurred within the scope of compact
26 commission employment, duties, or responsibilities, or as determined by the
27 compact commission that the person against whom the claim is made had a

1 reasonable basis for believing occurred within the scope of compact
2 commission employment, duties, or responsibilities; provided that nothing
3 herein shall be construed to prohibit that person from retaining their own
4 counsel at their own expense; and provided further, that the actual or
5 alleged act, error, or omission did not result from that person's intentional
6 or willful or wanton misconduct.

7 3. The compact commission shall indemnify and hold harmless any member,
8 officer, executive director, employee, and representative of the compact
9 commission for the amount of any settlement or judgment obtained against
10 that person arising out of any actual or alleged act, error, or omission that
11 occurred within the scope of compact commission employment, duties, or
12 responsibilities, or that such person had a reasonable basis for believing
13 occurred within the scope of compact commission employment, duties, or
14 responsibilities, provided that the actual or alleged act, error, or omission
15 did not result from the intentional or willful or wanton misconduct of that
16 person.

17 4. Nothing herein shall be construed as a limitation on the liability of any
18 licensee for professional malpractice or misconduct, which shall be
19 governed solely by any other applicable state laws.

20 5. Nothing in this compact shall be interpreted to waive or otherwise abrogate
21 a member state's state action immunity or state action affirmative defense
22 with respect to antitrust claims under the Sherman Act, Clayton Act, or any
23 other state or federal antitrust or anticompetitive law or regulation.

24 6. Nothing in this compact shall be construed to be a waiver of sovereign
25 immunity by the member states or by the compact commission.

26 7. The liability of the executive director and employees of the compact
27 commission or representatives of the compact commission, acting within the

1 scope of such person's employment or duties for acts, errors, or omissions,
2 may not exceed the limits of liability set forth under the constitution and
3 laws of this state for state officials, employees, and agents. The compact
4 commission is considered to be an instrumentality of the states for the
5 purposes of any such action.

6 SECTION 9.

7 DATA SYSTEM

8 A. The compact commission shall provide for the development, maintenance,
9 operation, and utilization of a coordinated data system.

10 B. The compact commission shall assign each applicant for a compact privilege a
11 unique identifier, as determined by the rules.

12 C. Notwithstanding any other provision of state law to the contrary, a member state
13 shall submit a uniform data set to the data system on all individuals to whom this
14 compact is applicable as required by the rules of the compact commission,
15 including:

16 1. Identifying information;

17 2. Licensure data;

18 3. Adverse actions against a license or compact privilege and information
19 related thereto;

20 4. Nonconfidential information related to alternative program participation,
21 the beginning and ending dates of such participation, and other information
22 related to such participation not made confidential under member state law;

23 5. Any denial of application for licensure, and the reasons for such denial;

24 6. The presence of current significant investigative information; and

25 7. Other information that may facilitate the administration of this compact or
26 the protection of the public, as determined by the rules of the compact
27 commission.

1 D. The records and information provided to a member state pursuant to this compact
2 or through the data system, when certified by the compact commission or an
3 agent thereof, shall constitute the authenticated business records of the compact
4 commission, and shall be entitled to any associated hearsay exception in any
5 relevant judicial, quasi-judicial, or administrative proceedings in a member state.

6 E. Current significant investigative information pertaining to a licensee in any
7 member state will only be available to other member states.

8 F. It is the responsibility of the member states to report any adverse action against a
9 licensee and to monitor the data system to determine whether any adverse action
10 has been taken against a licensee. Adverse action information pertaining to a
11 licensee in any member state will be available to any other member state.

12 G. Member states contributing information to the data system may designate
13 information that may not be shared with the public without the express
14 permission of the contributing state.

15 H. Any information submitted to the data system that is subsequently expunged
16 pursuant to federal law or the laws of the member state contributing the
17 information shall be removed from the data system.

18 SECTION 10.

19 RULEMAKING

20 A. The compact commission shall promulgate reasonable rules in order to effectively
21 and efficiently implement and administer the purposes and provisions of the
22 compact. A rule shall be invalid and have no force or effect only if a court of
23 competent jurisdiction holds that the rule is invalid because the compact
24 commission exercised its rulemaking authority in a manner that is beyond the
25 scope and purposes of the compact, or the powers granted hereunder, or based
26 upon another applicable standard of review.

27 B. The rules of the compact commission shall have the force of law in each member

1 state, provided however that where the rules conflict with the laws or regulations
2 of a member state that relate to the procedures, actions, and processes a licensed
3 dietitian is permitted to undertake in that state and the circumstances under
4 which they may do so, as held by a court of competent jurisdiction, the rules of
5 the compact commission shall be ineffective in that state to the extent of the
6 conflict.

7 C. The compact commission shall exercise its rulemaking powers pursuant to the
8 criteria set forth in this section and the rules adopted thereunder. Rules shall
9 become binding on the day following adoption or as of the date specified in the
10 rule or amendment, whichever is later.

11 D. If a majority of the legislatures of the member states rejects a rule or portion of a
12 rule, by enactment of a statute or resolution in the same manner used to adopt the
13 compact within four (4) years of the date of adoption of the rule, then such rule
14 shall have no further force and effect in any member state.

15 E. Rules shall be adopted at a regular or special meeting of the compact
16 commission.

17 F. Prior to adoption of a proposed rule, the compact commission shall hold a public
18 hearing and allow persons to provide oral and written comments, data, facts,
19 opinions, and arguments.

20 G. Prior to adoption of a proposed rule by the compact commission, and at least
21 thirty (30) days in advance of the meeting at which the compact commission will
22 hold a public hearing on the proposed rule, the compact commission shall
23 provide a notice of proposed rulemaking:

24 1. On the website of the compact commission or other publicly accessible
25 platform;

26 2. To persons who have requested notice of the compact commission's notices
27 of proposed rulemaking; and

1 3. In such other ways as the compact commission may by rule specify.

2 H. The notice of proposed rulemaking shall include:

3 1. The time, date, and location of the public hearing at which the compact
4 commission will hear public comments on the proposed rule and, if
5 different, the time, date, and location of the meeting where the compact
6 commission will consider and vote on the proposed rule;

7 2. If the hearing is held via telecommunication, video conference, or other
8 means of communication, the compact commission shall include the
9 mechanism for access to the hearing in the notice of proposed rulemaking;

10 3. The text of the proposed rule and the reason therefor;

11 4. A request for comments on the proposed rule from any interested person;
12 and

13 5. The manner in which interested persons may submit written comments.

14 I. All hearings will be recorded. A copy of the recording and all written comments
15 and documents received by the compact commission in response to the proposed
16 rule shall be available to the public.

17 J. Nothing in this section shall be construed as requiring a separate hearing on
18 each rule. Rules may be grouped for the convenience of the compact commission
19 at hearings required by this section.

20 K. The compact commission shall, by majority vote of all members, take final action
21 on the proposed rule based on the rulemaking record and the full text of the rule.

22 1. The compact commission may adopt changes to the proposed rule provided
23 the changes do not enlarge the original purpose of the proposed rule.

24 2. The compact commission shall provide an explanation of the reasons for
25 substantive changes made to the proposed rule as well as reasons for
26 substantive changes not made that were recommended by commenters.

27 3. The compact commission shall determine a reasonable effective date for the

1 rule. Except for an emergency as provided in subsection 10.L. of this
2 section, the effective date of the rule shall be no sooner than thirty (30) days
3 after issuing the notice that it adopted or amended the rule.

4 L. Upon determination that an emergency exists, the compact commission may
5 consider and adopt an emergency rule with twenty-four (24) hours' notice, with
6 opportunity to comment, provided that the usual rulemaking procedures provided
7 in the compact and in this section shall be retroactively applied to the rule as soon
8 as reasonably possible, in no event later than ninety (90) days after the effective
9 date of the rule. For the purposes of this provision, an emergency rule is one that
10 must be adopted immediately in order to:

- 11 1. Meet an imminent threat to public health, safety, or welfare;
12 2. Prevent a loss of compact commission or member state funds;
13 3. Meet a deadline for the promulgation of a rule that is established by federal
14 law or rule; or
15 4. Protect public health and safety.

16 M. The compact commission or an authorized committee of the compact commission
17 may direct revision to a previously adopted rule for purposes of correcting
18 typographical errors, errors in format, errors in consistency, or grammatical
19 errors. Public notice of any revision shall be posted on the website of the compact
20 commission. The revision shall be subject to challenge by any person for a period
21 of thirty (30) days after posting. The revision may be challenged only on grounds
22 that the revision results in a material change to a rule. A challenge shall be made
23 in writing and delivered to the compact commission prior to the end of the notice
24 period. If no challenge is made, the revision will take effect without further
25 action. If the revision is challenged, the revision may not take effect without the
26 approval of the compact commission.

27 N. No member state's rulemaking requirements shall apply under this compact.

SECTION 11.

OVERSIGHT, DISPUTE RESOLUTION, AND ENFORCEMENT

A. Oversight.

1. The executive and judicial branches of state government in each member state shall enforce this compact and take all actions necessary and appropriate to implement this compact.

2. Except as otherwise provided in this compact, venue is proper and judicial proceedings by or against the compact commission shall be brought solely and exclusively in a court of competent jurisdiction where the principal office of the compact commission is located. The compact commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings. Nothing herein shall affect or limit the selection or propriety of venue in any action against a licensee for professional malpractice, misconduct, or any such similar matter.

3. The compact commission shall be entitled to receive service of process in any proceeding regarding the enforcement or interpretation of the compact and shall have standing to intervene in such a proceeding for all purposes. Failure to provide the compact commission service of process shall render a judgment or order void as to the compact commission, this compact, or promulgated rules.

B. Default, Technical Assistance, and Termination.

1. If the compact commission determines that a member state has defaulted in the performance of its obligations or responsibilities under this compact or the promulgated rules, the compact commission shall provide written notice to the defaulting state. The notice of default shall describe the default, the proposed means of curing the default, and any other action that the

1 compact commission may take and shall offer training and specific
2 technical assistance regarding the default.

3 2. The compact commission shall provide a copy of the notice of default to the
4 other member states.

5 C. If a state in default fails to cure the default, the defaulting state may be
6 terminated from the compact upon an affirmative vote of a majority of the
7 delegates of the member states, and all rights, privileges, and benefits conferred
8 on that state by this compact may be terminated on the effective date of
9 termination. A cure of the default does not relieve the offending state of
10 obligations or liabilities incurred during the period of default.

11 D. Termination of membership in the compact shall be imposed only after all other
12 means of securing compliance have been exhausted. Notice of intent to suspend
13 or terminate shall be given by the compact commission to the Governor, the
14 majority and minority leaders of the defaulting state's legislature, the defaulting
15 state's licensing authority, and each of the member states' licensing authority.

16 E. A state that has been terminated is responsible for all assessments, obligations,
17 and liabilities incurred through the effective date of termination, including
18 obligations that extend beyond the effective date of termination.

19 F. Upon the termination of a state's membership from this compact, that state shall
20 immediately provide notice to all licensees within that state of such termination.
21 The terminated state shall continue to recognize all compact privileges granted
22 pursuant to this compact for a minimum of six (6) months after the date of said
23 notice of termination.

24 G. The compact commission shall not bear any costs related to a state that is found
25 to be in default or that has been terminated from the compact, unless agreed
26 upon in writing between the compact commission and the defaulting state.

27 H. The defaulting state may appeal the action of the compact commission by

1 petitioning the United States District Court for the District of Columbia or the
2 federal district where the compact commission has its principal offices. The
3 prevailing party shall be awarded all costs of such litigation, including
4 reasonable attorney's fees.

5 I. Dispute Resolution.

6 1. Upon request by a member state, the compact commission shall attempt to
7 resolve disputes related to the compact that arise among member states and
8 between member and nonmember states.

9 2. The compact commission shall promulgate a rule providing for both
10 mediation and binding dispute resolution for disputes as appropriate.

11 J. Enforcement.

12 1. By supermajority vote, the compact commission may initiate legal action
13 against a member state in default in the United States District Court for the
14 District of Columbia or the federal district where the compact commission
15 has its principal offices to enforce compliance with the provisions of the
16 compact and its promulgated rules. The relief sought may include both
17 injunctive relief and damages. In the event judicial enforcement is
18 necessary, the prevailing party shall be awarded all costs of such litigation,
19 including reasonable attorney's fees. The remedies herein shall not be the
20 exclusive remedies of the compact commission. The compact commission
21 may pursue any other remedies available under federal or the defaulting
22 member state's law.

23 2. A member state may initiate legal action against the compact commission in
24 the United States District Court for the District of Columbia or the federal
25 district where the compact commission has its principal offices to enforce
26 compliance with the provisions of the compact and its promulgated rules.
27 The relief sought may include both injunctive relief and damages. In the

- 1 event judicial enforcement is necessary, the prevailing party shall be
2 awarded all costs of such litigation, including reasonable attorney's fees.
3 3. No party other than a member state shall enforce this compact against the
4 compact commission.

5 SECTION 12.

6 EFFECTIVE DATE, WITHDRAWAL, AND AMENDMENT

- 7 A. The compact shall come into effect on the date on which the compact statute is
8 enacted into law in the seventh member state.

- 9 1. On or after the effective date of the compact, the compact commission shall
10 convene and review the enactment of each of the first seven (7) member
11 states ("charter member states") to determine if the statute enacted by each
12 such charter member state is materially different than the model compact
13 statute.

- 14 a. A charter member state whose enactment is found to be materially
15 different from the model compact statute shall be entitled to the
16 default process set forth in Section 11 of this compact.

- 17 b. If any member state is later found to be in default, or is terminated, or
18 withdraws from the compact, the compact commission shall remain in
19 existence and the compact shall remain in effect even if the number of
20 member states should be less than seven (7).

- 21 2. Member states enacting the compact subsequent to the seven (7) initial
22 charter member states shall be subject to the process set forth in Section
23 8.C.21. of this compact to determine if their enactments are materially
24 different from the model compact statute and whether they qualify for
25 participation in the compact.

- 26 3. All actions taken for the benefit of the compact commission or in
27 furtherance of the purposes of the administration of the compact prior to

1 the effective date of the compact or the compact commission coming into
2 existence shall be considered to be actions of the compact commission
3 unless specifically repudiated by the compact commission.

4 4. Any state that joins the compact subsequent to the compact commission's
5 initial adoption of the rules and bylaws shall be subject to the rules and
6 bylaws as they exist on the date on which the compact becomes law in that
7 state. Any rule that has been previously adopted by the compact commission
8 shall have the full force and effect of law on the day the compact becomes
9 law in that state.

10 B. Any member state may withdraw from this compact by enacting a statute
11 repealing the same.

12 1. A member state's withdrawal shall not take effect until one hundred eighty
13 (180) days after enactment of the repealing statute.

14 2. Withdrawal shall not affect the continuing requirement of the withdrawing
15 state's licensing authority to comply with the investigative and adverse
16 action reporting requirements of this compact prior to the effective date of
17 withdrawal.

18 3. Upon the enactment of a statute withdrawing from this compact, a state
19 shall immediately provide notice of such withdrawal to all licensees within
20 that state. Notwithstanding any subsequent statutory enactment to the
21 contrary, such withdrawing state shall continue to recognize all compact
22 privileges granted pursuant to this compact for a minimum of one hundred
23 eighty (180) days after the date of such notice of withdrawal.

24 C. Nothing contained in this compact shall be construed to invalidate or prevent any
25 licensure agreement or other cooperative arrangement between a member state
26 and a nonmember state that does not conflict with the provisions of this compact.

27 D. This compact may be amended by the member states. No amendment to this

1 compact shall become effective and binding upon any member state until it is
2 enacted into the laws of all member states.

3 SECTION 13.

4 CONSTRUCTION AND SEVERABILITY

5 A. This compact and the compact commission's rulemaking authority shall be
6 liberally construed so as to effectuate the purposes and the implementation and
7 administration of the compact. Provisions of the compact expressly authorizing or
8 requiring the promulgation of rules shall not be construed to limit the compact
9 commission's rulemaking authority solely for those purposes.

10 B. The provisions of this compact shall be severable and if any phrase, clause,
11 sentence, or provision of this compact is held by a court of competent jurisdiction
12 to be contrary to the constitution of any member state, a state seeking
13 participation in the compact, or of the United States, or the applicability thereof
14 to any government, agency, person, or circumstance is held to be unconstitutional
15 by a court of competent jurisdiction, the validity of the remainder of this compact
16 and the applicability thereof to any other government, agency, person, or
17 circumstance shall not be affected thereby.

18 C. Notwithstanding subsection B. of this section, the compact commission may deny
19 a state's participation in the compact or, in accordance with the requirements of
20 Section 11.B. of this compact, terminate a member state's participation in the
21 compact, if it determines that a constitutional requirement of a member state is a
22 material departure from the compact. Otherwise, if this compact shall be held to
23 be contrary to the constitution of any member state, the compact shall remain in
24 full force and effect as to the remaining member states and in full force and
25 effect as to the member state affected as to all severable matters.

26 SECTION 14.

27 CONSISTENT EFFECT AND CONFLICT WITH OTHER STATE LAWS

1 A. Nothing herein shall prevent or inhibit the enforcement of any other law of a
2 member state that is not inconsistent with the compact.

3 B. Any laws, statutes, regulations, or other legal requirements in a member state in
4 conflict with the compact are superseded to the extent of the conflict.

5 C. All permissible agreements between the compact commission and the member
6 states are binding in accordance with their terms.

7 SECTION 15.

8 APPLICABILITY TO KENTUCKY STATE GOVERNMENT

9 In order to clarify the effect of certain provisions of this compact and to ensure that the
10 rights and responsibilities of the various branches of government are maintained, the
11 following shall be in effect in this state:

12 A. By entering into this compact, this state authorizes the state licensing authority as
13 defined in Section 2.T. of this compact and as created by KRS 310.040 to
14 implement the provisions of this compact;

15 B. Notwithstanding any provision of this compact to the contrary:

16 1. When a rule is adopted pursuant to Section 10 of this compact, the state
17 licensing authority as defined in Section 2.T. of this compact shall have
18 sixty (60) days to review the rule for the purpose of filing the rule as an
19 emergency administrative regulation pursuant to KRS 13A.190 and for
20 filing the rule as an accompanying ordinary administrative regulation,
21 following the requirements of KRS Chapter 13A. Failure by the state
22 licensing authority as defined in Section 2.T. of this compact to promulgate
23 a rule adopted by the Dietitian Licensure Compact Commission as an
24 administrative regulation pursuant to KRS Chapter 13A shall result in the
25 initiation of the process for withdrawal as set forth in Section 12 of this
26 compact. Nothing in these provisions shall negate the applicability and
27 effect of a commission rule or Section 11 of this compact to this state;

1 2. If the proposed administrative regulation is found deficient and the
2 deficiency is not resolved pursuant to KRS 13A.330 or 13A.335, the
3 provisions of Section 11 of this compact shall apply. If the deficiency is
4 resolved in a manner determined by the Dietitian Licensure Compact
5 Commission to be inconsistent with this compact or its rules, or if the
6 procedures under Section 11 of this compact fail to resolve an issue, the
7 withdrawal provisions of Section 12 of this compact shall apply; and

8 3. If a court of competent jurisdiction determines that the Dietitian Licensure
9 Compact Commission created by Section 8 of this compact exercises its
10 rulemaking authority in a manner that is beyond the scope of the purposes
11 of this compact, or the powers granted under this compact, then such an
12 action by the commission shall be invalid and have no force or effect;

13 C. Section 8.G. of this compact pertaining to the financing of the Dietitian
14 Licensure Compact Commission shall not be interpreted to obligate the general
15 fund of this state. Any funds used to finance this compact shall be from money
16 collected pursuant to KRS 310.041; and

17 D. This compact shall apply only to those dietitians who practice or work under a
18 compact privilege.

19 ➔SECTION 3. A NEW SECTION OF KRS CHAPTER 310 IS CREATED TO
20 READ AS FOLLOWS:

21 (1) The board shall require a national and state criminal background investigation
22 for every:

23 (a) Applicant seeking an initial license issued by the board permitting the
24 applicant to engage in the practice of dietetics;

25 (b) Applicant seeking to reinstate a license to engage in the practice of dietetics;
26 and

27 (c) Person licensed to engage in the practice of dietetics authorized by the

1 board who applies for authorization to engage in the practice of dietetics
2 outside this Commonwealth in accordance with the dietitian licensure
3 compact.

4 (2) The criminal background investigation under subsection (1) of this section shall
5 be by means of a fingerprint check by the Department of Kentucky State Police
6 and Federal Bureau of Investigation pursuant to the following requirements:

7 (a) The board shall require each applicant described in subsection (1) of this
8 section to provide a complete and legible set of fingerprints to the
9 Department of Kentucky State Police for submission to the Federal Bureau
10 of Investigation for a national criminal background check after a state
11 criminal background check is conducted;

12 (b) The results of the national and state criminal background check shall be
13 sent to the board for the screening of applicants;

14 (c) The results of a national and state criminal background check shall not be
15 distributed or otherwise released by the board, except that the board:

16 1. Shall provide any applicant or credential holder the results of his or
17 her national and state criminal background check upon request; and

18 2. May introduce the results under seal as evidence in a legal proceeding
19 that involves a challenge to any disciplinary action taken by the board
20 based in whole or in part on information contained in the results; and

21 (d) Any fee charged by the Department of Kentucky State Police or for the
22 Federal Bureau of Investigation background check shall be an amount no
23 greater than the actual cost of processing the request and conducting the
24 background check.

25 (3) The board shall review the criminal background check results for every person
26 described in subsection (1)(c) of this section and determine whether the person is
27 eligible to apply for the compact privilege to practice outside this Commonwealth.

1 (4) The board may require a criminal background check for any person licensed to
2 engage in the practice of dietetics authorized by the board who is the subject of an
3 active investigation for a violation under this chapter or administrative
4 regulations promulgated thereunder.

5 (5) Unless otherwise required by law, the board shall not require a criminal
6 background check solely for the purpose of renewing a license.

7 (6) The board shall promulgate administrative regulations in accordance with KRS
8 Chapter 13A to implement this section.

9 ➔SECTION 4. A NEW SECTION OF KRS CHAPTER 311 IS CREATED TO
10 READ AS FOLLOWS:

11 ATHLETIC TRAINER COMPACT

12 SECTION 1. TITLE AND PURPOSE

13 This statute shall be known and cited as the Athletic Trainer Compact. The purposes of
14 this compact are to expand mobility of athletic training practice and improve public
15 access to services by providing qualified licensed athletic trainers the ability to practice
16 in other member states. This compact preserves the regulatory authority of states to
17 protect public health and safety through the current system of state licensure.

18 This compact is designed to achieve the following objectives:

19 A. Increase public access to athletic training and enhance continuity of care by
20 providing for the mutual recognition of other licenses issued by member states;

21 B. Provide an additional streamlined opportunity for interstate practice by licensed
22 athletic trainers who meet compact uniform requirements;

23 C. Promote mobility and workforce development by eliminating the necessity for
24 licenses in multiple states by providing for the mutual recognition of other
25 licenses issued by member states;

26 D. Reduce administrative burdens on licensed athletic trainers and member states;

27 E. Enhance the states' ability to protect the public's health and safety;

1 F. Encourage the cooperation of member states in regulating interstate practice of
2 licensed athletic trainers;

3 G. Support relocating active military members and their spouses;

4 H. Enhance the exchange of licensure, investigative, and disciplinary information
5 among member states;

6 I. Allow for the use of telehealth to facilitate increased access to athletic training
7 services;

8 J. Support the uniformity of licensed athletic trainer licensure requirements
9 throughout the states;

10 K. Affirm the authority of all member states to hold a licensed athletic trainer
11 accountable for abiding by the scope of practice in the state in which the patient
12 is located at the time of care; and

13 L. Require adherence to the model compact language in order to promote
14 uniformity and ensure that all member states have accepted and are mutually
15 obligated to the same terms.

16 SECTION 2. DEFINITIONS

17 As used in this compact, unless the context requires otherwise, the following
18 definitions shall apply:

19 A. "Active military member" means any individual with full-time duty status in the
20 active armed forces of the United States, including members of the National
21 Guard and Reserve;

22 B. "Adverse action" means any administrative, civil, equitable or criminal action
23 permitted by a state's laws which is imposed by a licensing authority or other
24 authority against a licensee, including actions against an individual's license or
25 compact privilege such as revocation, suspension, probation, monitoring of the
26 licensee, limitation on the licensee's practice, or any other encumbrance on
27 licensure affecting a licensee's authorization to practice;

- 1 C. "Alternative program" means a non-disciplinary monitoring or practice
2 remediation process applicable to an athletic trainer approved by a state licensing
3 authority of a member state in which the athletic trainer is licensed. This
4 includes, but is not limited to, programs to which licensees with substance use,
5 addiction, or mental health conditions are referred in lieu of adverse action;
- 6 D. "Athletic training" means the prevention, examination, assessment, treatment
7 and rehabilitation of emergent, acute, or chronic injuries and medical conditions
8 as defined by applicable member state laws and regulations;
- 9 E. "Athletic Trainer Compact Commission" or "Compact Commission" means the
10 government agency whose membership consists of all states that have enacted
11 this compact, as described herein and which shall operate as an instrumentality
12 of the member states to administer and implement the compact according to its
13 terms;
- 14 F. "BOC" means the Board of Certification, Inc., or any successor organization
15 thereto;
- 16 G. "CAATE" means the Commission on Accreditation of Athletic Training
17 Education or any successor organization thereto;
- 18 H. "Charter member state" means any member state which enacted and made
19 effective this compact by law before the compact effective date specified herein;
- 20 I. "Commissioner" means the individual appointed by a member state to serve as
21 the member of the commission for that member state;
- 22 J. "Compact privilege" means the legal authorization granted by a remote state,
23 equivalent to a license, allowing a licensee from another member state to provide
24 athletic training services in a remote state;
- 25 K. "Compact qualifying license" means a license that is not an encumbered license
26 issued by a member state to practice athletic training which qualifies the licensee
27 to exercise a compact privilege pursuant to Section 4 of this compact;

- 1 L. "Continuing competence" means a requirement, as a condition of license
2 renewal, to provide evidence of successful participation, and completion of,
3 educational and professional activities relevant to practice or area of work. For
4 purposes of this compact, evidence of active BOC certification may satisfy the
5 meaning of continuing competence as set forth herein;
- 6 M. "Current significant investigative information" means the existence of:
7 1. Investigative information that a licensing authority, after a preliminary
8 inquiry that includes notification and an opportunity for the subject licensee
9 to respond, if required by state law, has reason to believe is not groundless
10 and, if proven true, would indicate more than a minor infraction; or
11 2. Investigative information that indicates that the subject licensee represents
12 an immediate threat to public health and safety regardless of whether the
13 subject licensee has been notified and had an opportunity to respond;
- 14 N. "Criminal background check" means the submission of fingerprints or other
15 biometric-based information for a license applicant for the purpose of obtaining
16 that applicant's criminal history record information, as defined in 28 C.F.R. sec.
17 20.3(d) from the Federal Bureau of Investigation and the state's criminal history
18 record repository as defined in 28 C.F.R. sec. 20.3(f);
- 19 O. "Data system" means the commission's repository of information about
20 licensees, including but not limited to examination, licensure, investigative,
21 compact privilege, adverse action, and alternative program;
- 22 P. "Encumbrance" or "encumbered" means a revocation or suspension of, or any
23 limitation or condition on, the full and unrestricted practice of athletic training;
- 24 Q. "Executive committee" means a group of commissioners elected or appointed to
25 act on behalf of, and within the powers granted to them by, the compact and
26 commission;
- 27 R. "Investigative information" means information, records, and documents received

1 or generated by a licensing authority pursuant to an investigation;

2 S. "Jurisprudence requirement" means the assessment of an individual's
3 knowledge of the laws and rules governing the practice of athletic training, as
4 applicable, in a state;

5 T. "License" means current authorization by a member state to engage in the
6 practice of athletic training;

7 U. "Licensee" or "licensed athletic trainer" means an individual who currently
8 holds an active, unrestricted license and who meets all of the requirements
9 outlined in Section 4 of this compact;

10 V. "Licensing authority" means the board or agency of a state, or equivalent, that is
11 responsible for the licensing and regulation of athletic trainers;

12 W. "Model compact language" the model language for the Athletic Trainer Compact
13 on file with the Council of State Governments or other entity as designated by the
14 commission to which all member states must substantively adhere and adopt;

15 X. "Member state" means a state that has enacted the compact;

16 Y. "Remote state" means a member state other than the state of qualifying
17 licensure;

18 Z. "Rule" means a regulation promulgated by an authorized entity that has the
19 force of law;

20 AA. "Scope of practice" means the procedures, actions, and processes an athletic
21 trainer licensed in a state is permitted to undertake in that state and the
22 circumstances under which the licensee is permitted to undertake those
23 procedures, actions and processes. Such procedures, actions and processes and
24 the circumstances under which they may be undertaken may be established
25 through means, including, but not limited to, statute, regulations, case law, and
26 other processes available to the state licensing authority or other government
27 agency. Scope of practice shall include any state requirements regarding

1 supervision or direction, if required by such state and as further defined by such
2 state's statutes and regulations;

3 BB. "Single state license" means a license issued by any state that authorizes practice
4 only within the issuing state;

5 CC. "State" means any state, commonwealth, district, or territory of the United States
6 of America;

7 DD. "State of qualifying licensure" means the member state who has issued a
8 compact qualifying license to a licensee pursuant to this compact; and

9 EE. "Unencumbered license" means a license that authorizes a licensee to engage in
10 the full and unrestricted practice of athletic training.

11 SECTION 3. STATE PARTICIPATION IN THE COMPACT

12 A. To be eligible to join this compact and to maintain eligibility as a member state, a
13 state must:

14 1. Enact and maintain a statute that is not materially different from the model
15 compact language;

16 2. License and regulate the practice of athletic training;

17 3. Require that licensees in that state maintain continuing competence
18 standards as part of their state practice act or rules;

19 4. Have a mechanism in place for receiving and investigating complaints
20 about licensees;

21 5. Grant the compact privilege to a licensee who meets all the requirements
22 outlined in Section 4 of this compact in accordance with the terms of the
23 compact and any rules promulgated thereunder;

24 6. Participate fully in the compact commission's data system, including using
25 the unique identifier as defined in rules;

26 7. Notify the compact commission, in compliance with the terms of the
27 compact and rules, of any adverse action or the availability of current

1 significant investigative information regarding a licensee;

2 8. Within a time frame established by rule, implement or utilize procedures for
3 considering the criminal history records of applicants for a compact
4 qualifying license which includes receiving the results of the Federal
5 Bureau of Investigation record search and shall use those results in making
6 licensure decisions. These procedures shall include the submission of
7 fingerprints or other biometric-based information by applicants for the
8 purpose of obtaining an applicant's criminal history record information
9 from the Federal Bureau of Investigation and the agency responsible for
10 retaining that state's criminal records; and

11 a. A member state must fully implement a criminal background check
12 requirement in order to participate in the issuance and acceptance of
13 compact privileges; and

14 b. Communication between a member state and the compact commission
15 or among member states regarding the verification of eligibility for
16 licensure through the compact shall not include any information
17 received from the Federal Bureau of Investigation relating to a federal
18 criminal records check performed by a member state; and

19 9. Comply with and enforce the rules of the compact commission.

20 B. Member states may set and collect a fee for issuance and renewal of a compact
21 privilege to applicants.

22 C. Individuals without a compact qualifying license shall continue to be able to
23 apply for a member state's single-state license as provided under the laws of each
24 member state.

25 D. Nothing in this compact shall affect the requirements established by a member
26 state for the issuance of a single state license.

27 E. A compact qualifying license shall be recognized by each remote state as

1 authorizing that licensee to engage in the practice of athletic training, under a
2 compact privilege, in another member state in accordance with the requirements
3 in Section 4 of this compact.

4 SECTION 4. COMPACT PRIVILEGE

5 A. To be eligible for a compact privilege under the terms and provisions of the
6 compact, the licensee shall complete a criminal background check performed by
7 the licensing authority in the state of qualifying licensure prior to entry in the
8 compact and shall:

9 1. Satisfy one (1) of the following two (2) pathways:

10 a. Hold a valid current active certification through the BOC, or its
11 successor organization; or

12 b. If a licensee does not meet the requirements of Section 4.A.1.a. of this
13 compact, the following must be completed:

14 i. An education program which is either:

15 1. At least a bachelor's degree with a major course of study in
16 athletic training, or an equivalent course of study from a
17 college or university accredited at the time of graduation by
18 CAATE, or its successor organization;

19 2. An academic degree from a college or university in a
20 foreign country equivalent to the degree described in
21 subparagraph 1 of this subsection with a major course of
22 study as described in subparagraph 1 of this subsection that
23 is accredited by CAATE, or its successor organization; or

24 3. The substantial equivalent of the foregoing which the
25 commission may determine by rule.

26 ii. Successful completion of the exam administered by the BOC, or
27 its successor organization, preceding the date of the licensee's

1 application for licensure in their state of qualifying licensure or
2 the substantial equivalent of the foregoing requirement which
3 the commission may determine by rule.

4 2. Hold a compact qualifying license;

5 3. Have not had any encumbrance against any license or compact privilege to
6 practice athletic training within the previous two (2) years;

7 4. Be eligible for a compact privilege in any member state in accordance with
8 Section 4 of this compact;

9 5. Notify the compact commission that the licensee is seeking the compact
10 privilege within a remote state(s);

11 6. Pay any applicable fees, including any state fee, for the compact privilege;

12 7. Meet only the continuing competence requirements established by the state
13 of qualifying licensure;

14 8. Comply with any requirements of the state of qualifying licensure as set
15 forth in Section 3 of this compact;

16 9. Meet any jurisprudence requirements established by the remote state(s) in
17 which the licensee is seeking a compact privilege; and

18 10. Report to the compact commission any adverse action, encumbrance, or
19 restriction on a license taken by any non-member state within thirty (30)
20 days from the date the action is taken.

21 B. The compact privilege is valid until the expiration date of the compact qualifying
22 license. To maintain a compact privilege, renewal of the compact privilege shall
23 be congruent with the renewal of the compact qualifying license as the compact
24 commission may define by rule. The licensee must comply with the requirements
25 of this section to maintain the compact privilege in the remote state. A licensee
26 may apply for and hold compact privileges in multiple member states.

27 C. A licensed athletic trainer must follow the scope of practice of the member state

1 where the patient is located. A licensee engaging in the practice of athletic
2 training in a remote state under the compact privilege shall adhere to the scope of
3 practice laws and regulations of the remote state. Licensees shall be responsible
4 for educating themselves on, and complying with, any and all scope of practice
5 laws and regulations state laws relating to the remote practice of athletic training,
6 as applicable.

7 D. A licensee engaging in the practice of athletic training in a remote state is subject
8 to that state's regulatory authority. A remote state may, in accordance with due
9 process and that state's laws, remove a licensee's compact privilege in the remote
10 state for a specific period of time, impose fines, or take any other necessary
11 actions to protect the health and safety of its citizens. Any member state which
12 undertakes such an action shall promptly notify the member state and the
13 commission as specified in the rules. The licensee may be deemed to be ineligible
14 to exercise the compact privilege by any member state until the specific time for
15 removal has passed and all fines are paid.

16 E. All member state disciplinary orders that impose adverse action against a
17 compact qualifying license shall result in deactivation of the licensee's compact
18 privilege in all member states during the pendency of the order. If a compact
19 qualifying license is encumbered, the licensee shall lose the compact privilege in
20 any remote state until the following occur:

- 21 1. The compact qualifying license is no longer encumbered; and
- 22 2. The licensee has not had any encumbrance or restriction against any
23 license, compact qualifying license or compact privilege within the previous
24 two (2) years.

25 F. Once an encumbered license is restored to good standing as a compact qualifying
26 license (as certified by the licensing authority), the licensee must meet the
27 requirements of this section to obtain a compact privilege in any remote state.

1 G. If a licensee's compact privilege in any remote state is removed, that licensee may
2 also lose the compact privilege in other remote states, as each member state shall
3 determine in its sole authority, until the following occur:

4 1. The specific period of time for which the compact privilege was removed has
5 ended;

6 2. All fines have been paid; and

7 3. Have not had any encumbrance or restriction against any license or
8 compact privilege within the previous two (2) years.

9 H. Once the requirements of Section 4.G of this compact have been met, the licensee
10 must meet the requirements in Section 4.A of this compact to obtain a compact
11 privilege in a remote state.

12 SECTION 5. COMPACT QUALIFYING LICENSE

13 A. A licensee may only designate one (1) license as their compact qualifying license
14 at a time. The procedures for such designation may be further defined by compact
15 commission rule.

16 B. Nothing in this section shall require that the state of qualifying licensure be the
17 state of primary residence or state of primary practice for the licensee.

18 C. Nothing in this compact shall interfere with a licensee's ability to hold a single
19 state license in multiple states.

20 D. Nothing in this compact shall affect the requirements established by a member
21 state for the issuance of a single state license.

22 SECTION 6. ACTIVE MILITARY MEMBER OR THEIR SPOUSES

23 An active military member or their spouse shall not be required to pay a fee to the
24 commission for a compact privilege. If a member state chooses to charge a member
25 state fee, it may choose to charge a reduced fee or no fee to an active military member
26 or their spouse for a compact privilege.

27 SECTION 7. ADVERSE ACTIONS

- 1 A. A member state in which a licensee is issued a compact qualifying license shall
2 have the exclusive authority to impose adverse action against the compact
3 qualifying license issued by that member state.
- 4 B. A member state may take adverse action based on current significant investigative
5 information of a remote state, so long as the member state follows its own
6 procedures for imposing adverse action.
- 7 C. Nothing in this compact shall override a member state's decision that
8 participation in an alternative program may be used in lieu of adverse action and
9 that such participation shall remain non-public if required by the member state's
10 laws or rules.
- 11 D. A remote state shall have the authority to:
- 12 1. Take adverse actions as set forth herein against a licensee's compact
13 privilege in that state; and
- 14 2. Issue subpoenas for both hearings and investigations that require the
15 attendance and testimony of witnesses as well as the production of evidence.
- 16 a. Subpoenas may be issued by a member state athletic training licensing
17 authority for the attendance and testimony of witnesses and the
18 production of evidence.
- 19 b. A member state which issues a subpoena may request service of that
20 subpoena by another member state. The member state receiving the
21 request to serve a subpoena shall serve the subpoena if it is deemed
22 enforceable by a court of competent jurisdiction according to the
23 practice and procedure in the receiving member state.
- 24 c. The issuing authority shall pay any witness fees, travel expenses,
25 mileage, and other fees required by the service statutes of the state
26 where the witnesses or evidence are located.
- 27 E. For purposes of taking adverse action, a member state shall give the same priority

1 and effect to reported conduct received from another member state as it would if
2 the conduct had occurred within that state. In so doing, the investigating member
3 state shall apply its own state laws to determine appropriate action.

4 F. A member state, if otherwise permitted by state law, may recover from the affected
5 licensee the costs of investigations and dispositions of cases resulting from any
6 adverse action taken against that licensee.

7 G. Joint Investigations:

8 1. In addition to the authority granted to a member state by its respective state
9 law, any member state may participate with other member states in joint
10 investigations of licensees.

11 2. Member states shall share any current significant investigative information,
12 litigation, or compliance materials in furtherance of any joint or individual
13 investigation initiated under the compact. In sharing such information
14 between member state athletic trainer licensing authorities, all information
15 obtained shall be kept confidential, except as otherwise mutually agreed
16 upon by the sharing and receiving member state(s).

17 3. A remote state may issue subpoenas on behalf of a member state for both
18 hearings and investigations that require the attendance and testimony of
19 witnesses as well as the production of evidence.

20 H. If a member state takes adverse action, it shall promptly notify the administrator
21 of the data system. The administrator of the data system shall promptly notify all
22 member states of any adverse actions by remote states.

23 I. Nothing in this compact may permit a member state to take any adverse action
24 against a licensee or holder of a compact privilege for conduct or practice
25 occurring in another member state that was legal in the member state at the time
26 it was undertaken.

27 SECTION 8. ESTABLISHMENT AND OPERATION OF THE COMMISSION

1 A. The compact member states hereby create and establish a joint government
2 agency whose membership consists of all member states that have enacted the
3 compact known as the athletic trainer licensure compact commission. The
4 compact commission is an instrumentality of the member states acting jointly and
5 not an instrumentality of any one (1) state. The compact commission shall come
6 into existence on or after the effective date of the compact as set forth in Section
7 12 of this compact.

8 B. Membership, Voting, and Meetings

9 1. Each member state shall have and be limited to one (1) commissioner
10 selected by that member state's licensing authority within sixty (60) days of
11 the member state's effective date.

12 2. The commissioner shall be an administrator or their designated staff or
13 current board member of the licensing authority.

14 3. The compact commission may recommend removal or suspension of any
15 commissioner from office.

16 4. A member state's licensing authority shall fill any vacancy of its
17 commissioner occurring on the compact commission within sixty (60) days
18 of the vacancy.

19 5. Each commissioner shall be entitled to one (1) vote on all matters before the
20 compact commission requiring a vote by the commissioners.

21 6. The compact commission shall meet at least once during each calendar
22 year. Additional meetings may be held as set forth in the commission
23 bylaws. A commissioner shall vote in person or by such other means as
24 provided in the bylaws. The bylaws may provide for commissioners to meet
25 by telecommunication, videoconference, or other means of communication.

26 C. The compact commission shall have the following powers:

27 1. Promulgate, adopt, and amend rules and bylaws;

- 1 2. Establish code of conduct, confidentiality, and conflict of interest policies
- 2 for commissioners;
- 3 3. Establish the fiscal year of the compact commission;
- 4 4. Maintain its financial records in accordance with the bylaws;
- 5 5. Purchase and maintain insurance and insurance bonds;
- 6 6. Accept, or contract for services of personnel, including, but not limited to,
- 7 employees of a member state;
- 8 7. Conduct a financial review or audit;
- 9 8. Hire employees, elect or appoint officers, fix compensation, define duties,
- 10 grant such individuals appropriate authority to carry out the purposes of the
- 11 compact, and establish the compact commission's personnel policies and
- 12 programs relating to conflicts of interest, qualifications of personnel, and
- 13 other related personnel matters;
- 14 9. Enter into contracts or arrangements for the management of the affairs of
- 15 the commission;
- 16 10. Assess and collect fees;
- 17 11. Accept any and all appropriate gifts, donations, grants of money, other
- 18 sources of revenue, equipment, supplies, materials, and services, and
- 19 receive, utilize, and dispose of the same; provided that at all times the
- 20 compact commission shall avoid any appearance of impropriety or conflict
- 21 of interest;
- 22 12. Lease, purchase, retain, own, hold, improve, invest, or use any property,
- 23 real, personal, or mixed, or any undivided interest therein;
- 24 13. Sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise
- 25 dispose of any property real, personal, or mixed;
- 26 14. Establish a budget and make expenditures;
- 27 15. Borrow and invest money;

- 1 16. Meet and take such actions as are consistent with the provisions of this
2 compact, the compact commission's rules, and the bylaws;
- 3 17. Initiate and conclude legal proceedings or actions in the name of the
4 compact commission, provided that the standing of any licensing authority
5 to sue or be sued under applicable law shall not be affected;
- 6 18. Maintain and certify records and information provided to a member state as
7 the authenticated business records of the compact commission, and
8 designate an agent to do so on the compact commission's behalf;
- 9 19. Provide and receive information from, and cooperate with, law enforcement
10 agencies;
- 11 20. Determine whether a state's adopted language is materially different from
12 the model compact language such that the state would not qualify for
13 participation in the compact;
- 14 21. Establish and elect an executive committee, including a chair and a vice
15 chair, secretary, treasurer, and such other offices as the commission shall
16 establish by rule or bylaw;
- 17 22. Appoint committees, including standing committees, composed of member
18 state commissioners, state regulators, state legislators or their
19 representatives, and consumer representatives, and such other interested
20 persons as may be designated in this compact and the bylaws; and
- 21 23. Perform such other functions as may be necessary or appropriate to achieve
22 the purposes of this compact.

23 D. The Executive Committee

- 24 1. The executive committee shall have the power to act on behalf of the
25 compact commission according to the terms of this compact. The powers,
26 duties, and responsibilities of the executive committee shall include:
- 27 a. Exercise the powers and duties of the compact commission during the

- 1 interim between compact commission meetings, except for adopting or
2 amending rules, adopting or amending bylaws, and exercising any
3 other powers and duties expressly reserved to the compact commission
4 by rule or bylaw;
- 5 b. Oversee the day-to-day activities of the administration of the compact
6 including enforcement and compliance with the provisions of the
7 compact, its rules and bylaws, and other such duties as deemed
8 necessary;
- 9 c. Recommend to the compact commission changes to the rules or
10 bylaws, changes to this compact legislation, fees charged to compact
11 member states, fees charged to licensees, and other fees;
- 12 d. Ensure compact administration services are appropriately provided,
13 including by contract;
- 14 e. Prepare and recommend the budget;
- 15 f. Maintain financial records on behalf of the compact commission;
- 16 g. Monitor compact compliance of member states and provide
17 compliance reports to the compact commission;
- 18 h. Establish additional committees as necessary; and
- 19 i. Other duties as provided in the rules or bylaws of the compact
20 commission.
- 21 2. The executive committee shall be composed of five (5) voting members,
22 elected by the compact commission;
- 23 a. The chair and vice chair of the compact commission, shall be voting
24 members of the executive committee;
- 25 b. The compact commission shall elect up to three (3) additional voting
26 members from the current membership of the compact commission to
27 include the offices of treasurer, secretary, and one (1) member-at-

1 large; and

2 c. Up to four (4) ex-officio, nonvoting members from recoqnized
3 national athletic trainer organizations.

4 3. The compact commission may remove any member of the executive
5 committee as provided in the compact commission's bylaws.

6 4. The executive committee shall meet at least annually:

7 1. Executive committee meetings shall be open to the public, except that
8 the executive committee may meet in a closed, non-public meeting as
9 provided in this section.

10 2. The executive committee shall give advance notice of its meetings,
11 posted on its website and as determined by rule or bylaw to provide
12 notice to persons with an interest in the business of the compact
13 commission.

14 3. The executive committee may hold a special meeting in accordance
15 with this section.

16 E. The compact commission shall adopt and provide to the member states an annual
17 report.

18 F. Meetings of the Compact Commission:

19 1. All meetings shall be open to the public, except that the compact
20 commission may meet in a closed, non-public meeting as provided in this
21 section.

22 2. Public notice for all meetings of the full compact commission of meetings
23 shall be given in the same manner as required under the rulemaking
24 provisions in this compact, except that the compact commission may hold a
25 special meeting as provided in this section.

26 3. The compact commission may hold a special meeting when it must meet to
27 conduct emergency business by giving twenty-four (24) hours' notice to all

1 commissioners, on the compact commission's website, and other means as
2 provided in the compact commission's rules. The compact commission's
3 legal counsel shall certify that the compact commission's need to meet
4 qualifies as an emergency.

5 4. The compact commission or the executive committee or other committees of
6 the compact commission may convene in a closed, non-public meeting for
7 the compact commission or executive committee or other committees of the
8 compact commission to receive legal advice or to discuss:

9 a. Non-compliance of a member state with its obligations under the
10 compact;

11 b. The employment, compensation, discipline or other matters, practices
12 or procedures related to specific employees;

13 c. Current or threatened discipline of a licensee by a member state's
14 licensing authority;

15 d. Current, threatened, or reasonably anticipated litigation;

16 e. Negotiation of contracts for the purchase, lease, or sale of goods,
17 services, or real estate;

18 f. Accusing any person of a crime or formally censuring any person;

19 g. Trade secrets or commercial or financial information that is privileged
20 or confidential;

21 h. Information of a personal nature where disclosure would constitute a
22 clearly unwarranted invasion of personal privacy;

23 i. Investigative records compiled for law enforcement purposes;

24 j. Information related to any investigative reports prepared by or on
25 behalf of or for use of the compact commission or other committee
26 charged with responsibility of investigation or determination of
27 compliance issues pursuant to the compact;

1 k. Matters specifically exempted from disclosure by federal or member
2 state law; or

3 l. Other matters as specified in rules of the compact commission.

4 5. If a meeting, or portion of a meeting, is closed, the compact commission's
5 legal counsel or designee shall certify that the meeting will be closed and
6 reference each relevant exempting provision, and such reference shall be
7 recorded in the minutes. All minutes and documents of a closed meeting
8 shall remain under seal, subject to release only by a majority vote of the
9 compact commission or order of a court of competent jurisdiction.

10 G. Financing of the Compact Commission:

11 1. The compact commission shall pay, or provide for the payment of, the
12 reasonable expenses of its establishment, organization, and ongoing
13 activities.

14 2. The compact commission may accept any and all appropriate revenue
15 sources as provided in this section.

16 3. The compact commission may levy on and collect an annual assessment
17 from each member state and impose fees on licensees of member states to
18 whom it grants a compact privilege to cover the cost of the operations and
19 activities of the compact commission and its staff, which must be in a total
20 amount sufficient to cover its annual budget as approved each year for
21 which revenue is not provided by other sources. The aggregate annual
22 assessment amount for member states shall be allocated based upon a
23 formula that the compact commission shall promulgate by rule.

24 4. The compact commission shall not incur obligations of any kind prior to
25 securing the funds or a loan adequate to meet the same; nor shall the
26 compact commission pledge the credit of any of the member states, except
27 by and with the authority of the member state.

1 5. The compact commission shall keep accurate accounts of all receipts and
2 disbursements. The receipts and disbursements of the compact commission
3 shall be subject to the financial review or audit and accounting procedures
4 established under its bylaws. However, all receipts and disbursements of
5 funds handled by the compact commission shall be subject to an annual
6 financial review or audit by a certified or licensed public accountant, and
7 the report of the financial review or audit shall be included in and become
8 part of the annual report of the compact commission.

9 H. Qualified Immunity, Defense, and Indemnification:

10 1. The members, officers, executive director, employees and representatives of
11 the compact commission shall be immune from suit and liability, both
12 personally and in their official capacity, for any claim for damage to or loss
13 of property or personal injury or other civil liability caused by or arising out
14 of any actual or alleged act, error, or omission that occurred, or that the
15 person against whom the claim is made had a reasonable basis for believing
16 occurred within the scope of compact commission employment, duties or
17 responsibilities; provided that nothing in this paragraph shall be construed
18 to protect any such person from suit or liability for any damage, loss, injury,
19 or liability caused by the intentional or willful or wanton misconduct of that
20 person. The procurement of insurance of any type by the compact
21 commission shall not in any way compromise or limit the immunity granted
22 hereunder.

23 2. The compact commission shall defend any member, officer, executive
24 director, employee, and representative of the compact commission in any
25 civil action seeking to impose liability arising out of any actual or alleged
26 act, error, or omission that occurred within the scope of compact
27 commission employment, duties, or responsibilities, or as determined by the

1 compact commission that the person against whom the claim is made had a
2 reasonable basis for believing occurred within the scope of compact
3 commission employment, duties, or responsibilities; provided that nothing
4 herein shall be construed to prohibit that person from retaining their own
5 counsel at their own expense; and provided further, that the actual or
6 alleged act, error, or omission did not result from that person's intentional
7 or willful or wanton misconduct.

8 3. The compact commission shall indemnify and hold harmless any member,
9 officer, executive director, employee, and representative of the compact
10 commission for the amount of any settlement or judgment obtained against
11 that person arising out of any actual or alleged act, error, or omission that
12 occurred within the scope of compact commission employment, duties, or
13 responsibilities, or that such person had a reasonable basis for believing
14 occurred within the scope of compact commission employment, duties, or
15 responsibilities, provided that the actual or alleged act, error, or omission
16 did not result from the intentional or willful or wanton misconduct of that
17 person.

18 4. Nothing herein shall be construed as a limitation on the liability of any
19 licensee for professional malpractice or misconduct, which shall be
20 governed solely by any other applicable state laws.

21 5. Nothing in this compact shall be interpreted to waive or otherwise abrogate
22 a member state's state action immunity or state action affirmative defense
23 with respect to antitrust claims under the Sherman Act, Clayton Act, or any
24 other state or federal antitrust or anticompetitive law or regulation.

25 6. Nothing in this compact shall be construed to be a waiver of sovereign
26 immunity by the member states or by the compact commission.

27 7. The liability of the executive director and employees of the compact

1 commission or representatives of the compact commission, acting within the
2 scope of such person's employment or duties for acts, errors, or omissions,
3 may not exceed the limits of liability set forth under the constitution and
4 laws of this state for state officials, employees, and agents. The compact
5 commission is considered to be an instrumentality of the states for the
6 purposes of any such action.

7 SECTION 9. DATA SYSTEM

8 A. The commission shall provide for the development, maintenance, operation, and
9 utilization of a coordinated data system and reporting system containing
10 licensure, compact privileges, adverse action, and the presence of current
11 significant investigative information on all licensees and applicants for a license
12 in member states.

13 B. Notwithstanding any other provision of state law to the contrary, a member state
14 shall submit a uniform data set to the data system on all licensees, applicants, and
15 others to whom this compact is applicable as required by the rules of the compact
16 commission, including:

17 1. Personally identifying information;

18 2. Licensure data;

19 3. Adverse actions against a licensee, license applicant or compact privilege
20 and information related thereto;

21 4. Non-confidential information related to alternative program participation,
22 the beginning and ending dates of such participation, and other information
23 related to such participation;

24 5. Any denial of an application for licensure, and the reason(s) for such
25 denial, (excluding the reporting of any criminal history record information
26 where prohibited by law);

27 6. A binary determination regarding the presence of current significant

1 investigative information; and

2 7. Other information that may facilitate the administration of this compact or
3 the protection of the public, as determined by the rules of the commission.

4 C. The records and information provided to a member state pursuant to this compact
5 or through the data system, when certified by the commission or an agent thereof,
6 shall constitute the authenticated business records of the commission, and shall
7 be entitled to any associated hearsay exception in any relevant judicial, quasi-
8 judicial or administrative proceedings in a member state.

9 D. Current significant investigative information pertaining to a licensee in any
10 member state will only be available to other member states.

11 E. It is the responsibility of the member states to monitor the data system to
12 determine whether adverse action has been taken against a licensee or license
13 applicant. Adverse action information pertaining to a licensee or license
14 applicant in any member state will be available to any other member state.

15 F. Member states contributing information to the data system may designate
16 information that may not be shared with the public without the express
17 permission of the contributing state.

18 G. Any information submitted to the data system that is subsequently expunged
19 pursuant to federal law or the laws of the member state contributing the
20 information shall be removed from the data system.

21 SECTION 10. RULEMAKING

22 A. The compact commission shall promulgate reasonable rules in order to effectively
23 and efficiently implement and administer the purposes and provisions of the
24 compact. A rule shall be invalid and have no force or effect only if a court of
25 competent jurisdiction holds that the rule is invalid because the compact
26 commission exercised its rulemaking authority in a manner that is beyond the
27 scope and purposes of the compact, or the powers granted hereunder, or based

1 upon another applicable standard of review.

2 B. The rules of the compact commission shall have the force of law in each member
3 state, provided however that where the rules conflict with the laws or regulations
4 of a member state that relate to the scope of practice a licensed athletic trainer is
5 permitted to undertake in that state and the circumstances under which they may
6 do so, as held by a court of competent jurisdiction, the rules of the compact
7 commission shall be ineffective in that state to the extent of the conflict.

8 C. The compact commission shall exercise its rulemaking powers pursuant to the
9 criteria set forth in this section and the rules adopted thereunder. Rules of this
10 compact shall become binding on the day following adoption or as of the date
11 specified in the rule or amendment, whichever is later.

12 D. If a majority of the legislatures of the member states rejects a rule or portion of a
13 rule, by enactment of a statute or resolution in the same manner used to adopt the
14 compact within four (4) years of the date of adoption of the rule, then such rule
15 shall have no further force and effect in any member state.

16 E. Rules shall be adopted at a regular or special meeting of the compact
17 commission.

18 F. Prior to adoption of a proposed rule, the compact commission shall hold a public
19 hearing and allow persons to provide oral and written comments, data, facts,
20 opinions, and arguments. At least thirty (30) days in advance of the public
21 hearing on the proposed rule, the compact commission shall provide a notice of
22 proposed rulemaking;

23 1. On the website of the compact commission or other publicly accessible
24 platform;

25 2. To persons who have requested notice of the compact commission's notices
26 of proposed rulemaking; and

27 3. In such other way(s) as the compact commission may by rule specify.

1 G. The notice of proposed rulemaking shall include:

2 1. The time, date, and location of the public hearing at which the compact
3 commission will hear public comments on the proposed rule and, if
4 different, the time, date, and location of the meeting where the compact
5 commission will consider and vote on the proposed rule;

6 2. If the hearing is held via telecommunication, video conference, or other
7 electronic means, the compact commission shall include the mechanism for
8 access to the hearing in the notice of proposed rulemaking;

9 3. The text of the proposed rule and the reason therefor;

10 4. A request for comments on the proposed rule from any interested person;
11 and

12 5. The manner in which interested persons may submit written comments.

13 H. All hearings will be recorded. A copy of the recording and all written comments
14 and documents received by the compact commission in response to the proposed
15 rule shall be available to the public.

16 I. Nothing in this section shall be construed as requiring a separate hearing on
17 each rule. Rules may be grouped for the convenience of the compact commission
18 at hearings required by this section.

19 J. The compact commission shall, by majority vote of all members, take final action
20 on the proposed rule based on the rulemaking record and the full text of the rule.

21 1. The compact commission may adopt changes to the proposed rule provided
22 the changes do not enlarge the original purpose of the proposed rule.

23 2. The compact commission shall provide an explanation of the reasons for
24 substantive changes made to the proposed rule as well as reasons for
25 substantive changes not made that were recommended by commenters.

26 3. The compact commission shall determine a reasonable effective date for the
27 rule. Except for an emergency as provided in this section, the effective date

1 of the rule shall be no sooner than thirty (30) days after issuing the notice
2 that it adopted or amended the rule.

3 K. Upon determination that an emergency exists, the compact commission may
4 consider and adopt an emergency rule with twenty-four (24) hours' notice, with
5 opportunity to comment, provided that the usual rulemaking procedures provided
6 in the compact and in this section shall be retroactively applied to the rule as soon
7 as reasonably possible, in no event later than ninety (90) days after the effective
8 date of the rule. For the purposes of this provision, an emergency rule is one that
9 must be adopted immediately in order to:

- 10 1. Meet an imminent threat to public health, safety, or welfare;
11 2. Prevent a loss of compact commission or member state funds;
12 3. Meet a deadline for the promulgation of a rule that is established by federal
13 law or rule; or
14 4. Protect public health and safety.

15 L. The compact commission or an authorized committee of the compact commission
16 may direct revisions to a previously adopted rule for purposes of correcting
17 typographical errors, errors in format, errors in consistency, or grammatical
18 errors. Public notice of any revisions shall be posted on the website of the
19 compact commission. The revision shall be subject to challenge by any person for
20 a period of thirty (30) days after posting. The revision may be challenged only on
21 grounds that the revision results in a material change to a rule. A challenge shall
22 be made in writing and delivered to the compact commission prior to the end of
23 the notice period. If no challenge is made, the revision will take effect without
24 further action. If the revision is challenged, the revision may not take effect
25 without the approval of the compact commission.

26 M. No member state's rulemaking requirements shall apply under this compact.

27 SECTION 11. OVERSIGHT, DISPUTE RESOLUTION, AND ENFORCEMENT

1 A. Oversight:

2 1. The executive and judicial branches of state government in each member
3 state shall enforce this compact and take all actions necessary and
4 appropriate to implement the compact.

5 2. Except as otherwise provided in this compact, venue is proper and judicial
6 proceedings by or against the compact commission shall be brought solely
7 and exclusively in a court of competent jurisdiction where the principal
8 office of the compact commission is located. The compact commission may
9 waive venue and jurisdictional defenses to the extent it adopts or consents to
10 participate in alternative dispute resolution proceedings. Nothing herein
11 shall affect or limit the selection or propriety of venue in any action against
12 a licensee for professional malpractice, misconduct or any such similar
13 matter.

14 3. The compact commission shall be entitled to receive service of process in
15 any proceeding regarding the enforcement or interpretation of the compact
16 and shall have standing to intervene in such a proceeding for all purposes.
17 Failure to provide the compact commission service of process shall render a
18 judgment or order void as to the compact commission, this compact, or
19 promulgated rules.

20 B. Default, Technical Assistance, and Termination:

21 1. If the compact commission determines that a member state has defaulted in
22 the performance of its obligations or responsibilities under this compact or
23 the promulgated rules, the commission shall provide written notice to the
24 defaulting state. The notice of default shall describe the default, the
25 proposed means of curing the default, and any other action that the
26 compact commission may take, and shall offer training and specific
27 technical assistance regarding the default.

1 2. The compact commission shall provide a copy of the notice of default to the
2 other member states.

3 C. If a state in default fails to cure the default, the defaulting state may be
4 terminated from the compact upon an affirmative vote of a majority of the
5 commissioners of the member states, and all rights, privileges and benefits
6 conferred on that state by this compact may be terminated on the effective date of
7 termination. A cure of the default does not relieve the offending state of
8 obligations or liabilities incurred during the period of default.

9 D. Termination of membership in the compact shall be imposed only after all other
10 means of securing compliance have been exhausted. Notice of intent to suspend
11 or terminate shall be given by the compact commission to the Governor, the
12 majority and minority leaders of the defaulting state's legislature, the defaulting
13 state's licensing authority and each of the member states' licensing authority.

14 E. A state that has been terminated is responsible for all assessments, obligations,
15 and liabilities incurred through the effective date of termination, including
16 obligations that extend beyond the effective date of termination.

17 F. Upon the termination of a state's membership from this compact, that state shall
18 immediately provide notice to all licensees within that state of such termination.
19 The terminated state shall continue to recognize all licenses and compact
20 privileges granted pursuant to this compact for a minimum of one hundred eighty
21 (180) days after the date of said notice of termination.

22 G. The compact commission shall not bear any costs related to a state that is found
23 to be in default or that has been terminated from the compact, unless agreed
24 upon in writing between the compact commission and the defaulting state.

25 H. The defaulting state may appeal the action of the compact commission by
26 petitioning the U.S. District Court for the District of Columbia or the federal
27 district where the compact commission has its principal offices. The prevailing

1 party shall be awarded all costs of such litigation, including reasonable attorney's
2 fees.

3 I. Dispute Resolution:

4 1. Upon request by a member state, the compact commission shall attempt to
5 resolve disputes related to the compact that arise among member states and
6 between member and non-member states.

7 2. The compact commission shall promulgate a rule providing for both
8 mediation and binding dispute resolution for disputes as appropriate.

9 J. Enforcement:

10 1. By two-thirds (2/3) majority vote, the compact commission may initiate legal
11 action against a member state in default in the United States District Court
12 for the District of Columbia or the federal district where the compact
13 commission has its principal offices to enforce compliance with the
14 provisions of the compact and its promulgated rules. The relief sought may
15 include both injunctive relief and damages. In the event judicial
16 enforcement is necessary, the prevailing party shall be awarded all costs of
17 such litigation, including reasonable attorney's fees. The remedies herein
18 shall not be the exclusive remedies of the compact commission. The
19 compact commission may pursue any other remedies available under
20 federal or the defaulting member state's law.

21 2. A member state may initiate legal action against the compact commission in
22 the U.S. District Court for the District of Columbia or the federal district
23 where the compact commission has its principal offices to enforce
24 compliance with the provisions of the compact and its promulgated rules.
25 The relief sought may include both injunctive relief and damages. In the
26 event judicial enforcement is necessary, the prevailing party shall be
27 awarded all costs of such litigation, including reasonable attorney's fees.

1 3. No person other than a member state shall enforce this compact against the
2 compact commission.

3 SECTION 12. EFFECTIVE DATE, WITHDRAWAL, AND AMENDMENT

4 A. The compact shall come into effect on the date on which the compact statute is
5 enacted into law in the seventh member state.

6 1. On or after the effective date of the compact, the compact commission shall
7 convene and review the enactment of each of the first seven (7) member
8 states ("charter member states") to determine if the statute enacted and
9 made effective by each such charter member state is materially different
10 than the model compact statute.

11 a. A charter member state whose enactment is found to be materially
12 different from the model compact language shall be entitled to the
13 default process set forth in Section 11 of this compact.

14 b. If any member state is later found to be in default, or is terminated or
15 withdraws from the compact, the compact commission shall remain in
16 existence and the compact shall remain in effect even if the number of
17 member states should be less than seven (7).

18 2. Member states enacting the compact subsequent to the seven (7) initial
19 charter member states shall be subject to the process set forth in this section
20 to determine if their enactments are materially different from the model
21 compact statute and whether they qualify for participation in the compact.

22 3. All actions taken for the benefit of the compact commission or in
23 furtherance of the purposes of the administration of the compact prior to
24 the effective date of the compact or the compact commission coming into
25 existence shall be considered to be actions of the compact commission
26 unless specifically repudiated by the compact commission.

27 4. Any state that joins the compact subsequent to the compact commission's

1 initial adoption of the rules and bylaws shall be subject to the rules and
2 bylaws as they exist on the date on which the compact becomes law in that
3 state. Any rule that has been previously adopted by the compact commission
4 shall have the full force and effect of law on the day the compact becomes
5 law in that state.

6 B. Any member state may withdraw from this compact by enacting a statute
7 repealing the same.

8 1. A member state's withdrawal shall not take effect until one hundred eighty
9 (180) days after enactment of the repealing statute.

10 2. Withdrawal shall not affect the continuing requirement of the withdrawing
11 state's licensing authority to comply with the investigative and adverse
12 action reporting requirements of this compact prior to the effective date of
13 withdrawal.

14 3. Upon the enactment of a statute withdrawing from this compact, a state
15 shall immediately provide notice of such withdrawal to all licensees and
16 privilege holders within that state. Notwithstanding any subsequent
17 statutory enactment to the contrary, such withdrawing state shall continue
18 to recognize all compact privileges granted pursuant to this compact for a
19 minimum of one hundred eighty (180) days after the date of such notice of
20 withdrawal.

21 4. Nothing contained in this compact shall be construed to invalidate or
22 prevent any licensure agreement or other cooperative arrangement between
23 a member state and a non-member state that does not conflict with the
24 provisions of this compact.

25 5. This compact may be amended by the member states. No amendment to this
26 compact shall become effective and binding upon any member state until it
27 is enacted into the laws of all member states.

1 **SECTION 13. CONSTRUCTION AND SEVERABILITY**

2 **A. This compact and the compact commission's rulemaking authority shall be**
3 **liberally construed so as to effectuate the purposes, and the implementation and**
4 **administration of the compact. Provisions of the compact expressly authorizing or**
5 **requiring the promulgation of rules shall not be construed to limit the compact**
6 **commission's rulemaking authority solely for those purposes.**

7 **B. The provisions of this compact shall be severable and if any phrase, clause,**
8 **sentence or provision of this compact is held by a court of competent jurisdiction**
9 **to be contrary to the constitution of any member state, a state seeking**
10 **participation in the compact, or of the United States, or the applicability thereof**
11 **to any government, agency, person or circumstance is held to be unconstitutional**
12 **by a court of competent jurisdiction, the validity of the remainder of this compact**
13 **and the applicability thereof to any other government, agency, person or**
14 **circumstance shall not be affected thereby.**

15 **C. Notwithstanding the foregoing, the compact commission may deny a state's**
16 **participation in the compact or terminate a member state's participation in the**
17 **compact if it determines that a constitutional requirement of a member state is a**
18 **material departure from the compact. Otherwise, if this compact shall be held to**
19 **be contrary to the constitution of any member state, the compact shall remain in**
20 **full force and effect as to the remaining member states and in full force and**
21 **effect as to the member state affected as to all severable matters.**

22 **SECTION 14. CONSISTENT EFFECT AND CONFLICT WITH OTHER STATE**

23 **LAWS**

24 **A. Nothing herein shall prevent or inhibit the enforcement of any other law of a**
25 **member state that is not inconsistent with the compact.**

26 **B. Any laws, statutes, regulations, or other legal requirements in a member state in**
27 **conflict with the compact are superseded to the extent of the conflict.**

1 C. All permissible agreements between the compact commission and the member
2 states are binding in accordance with their terms.

3 SECTION 15. APPLICABILITY TO KENTUCKY STATE GOVERNMENT

4 In order to clarify the effect of certain provisions of this compact and to ensure that the
5 rights and responsibilities of the various branches of government are maintained, the
6 following shall be in effect in this state:

7 A. By entering into this compact, this state authorizes the state athletic trainer
8 licensing authority as defined in Section 2.V. of this compact and as created by
9 KRS 311.530 and authorized to promulgate administrative regulations under
10 KRS 311.901 to implement the provisions of this compact;

11 B. Notwithstanding any provision of this compact to the contrary:

12 1. When a rule is adopted pursuant to Section 10 of this compact, the state
13 athletic trainer licensing authority as defined in Section 2.V. of this compact
14 shall have sixty (60) days to review the rule for the purpose of filing the rule
15 as an emergency administrative regulation pursuant to KRS 13A.190 and
16 for filing the rule as an accompanying ordinary administrative regulation,
17 in accordance with the requirements in KRS Chapter 13A. Failure by the
18 state athletic trainer licensing authority as defined in Section 2.V. of this
19 compact to promulgate a rule adopted by the athletic trainer licensure
20 compact commission as an administrative regulation pursuant to KRS
21 Chapter 13A shall result in the initiation of the process for withdrawal as
22 set forth in Section 12 of this compact. Nothing in these provisions shall
23 negate the applicability and effect of a commission rule or Section 10 of this
24 compact to this state;

25 2. If the proposed administrative regulation is found deficient and the
26 deficiency is not resolved pursuant to KRS 13A.330 or 13A.335, the
27 provisions of Section 11 of this compact shall apply. If the deficiency is

- 1 resolved in a manner determined by the athletic trainer licensure compact
2 commission to be inconsistent with this compact or its rules, or if the
3 procedures under Section 11 of this compact fail to resolve an issue, the
4 withdrawal provisions of Section 12 of this compact shall apply; and
5 3. If a court of competent jurisdiction determines that the Athletic Trainer
6 Compact Commission created by Section 8 of this compact exercises its
7 rulemaking authority in a manner that is beyond the scope of the purposes
8 of this compact, or the powers granted under this compact, then such an
9 action by the commission shall be invalid and have no force or effect;
10 C. Section 8.G. of this compact pertaining to the financing of the Athletic Trainer
11 Compact Commission shall not be interpreted to obligate the general fund of this
12 state. Any funds used to finance this compact shall be from money collected
13 pursuant to KRS 311.610; and
14 D. This compact shall apply only to those athletic trainers who practice or work
15 under a compact privilege.